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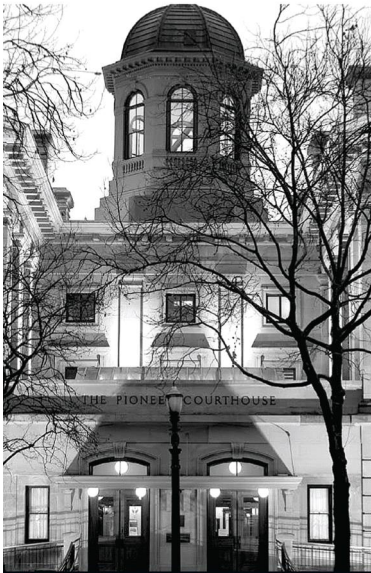
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**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED JURISDICTION**

STEPHEN RUSSELL, an
individual,

Plaintiff,

v.

CASE NO. CGC-18-570137

TARA WALSH, an individual;
and DOES 1-20,

Defendants.

TARA WALSH, an individual,

Cross-Complainant,

v.

STEPHEN RUSSELL, an individual;
and DOES 1-10,

Cross-Defendants.

REMOTE DEPOSITION BY VIDEOCONFERENCE

STEPHEN WALSH

**TAKEN ON
MONDAY, APRIL 26, 2021
12:03 P.M.**

**394 WHIPOORWILL ROAD
CHAPPAQUA, NEW YORK 10514**

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1 **REMOTE DEPOSITION BY VIDEOCONFERENCE**

2 **STEPHEN WALSH**

3 **TAKEN ON**

4 **MONDAY, APRIL 26, 2021**

5 **12:03 P.M.**

6
7 **(WHEREUPON, the Exhibit 34 and Exhibit 35**
8 **were premarked.)**

9 **THE VIDEOGRAPHER:** We are on the record.
10 The time is 12:03 p.m., East Coast Time. The date
11 is April 26, 2021. This is the beginning of the
12 deposition of Stephen Walsh. The case caption is
13 Stephen Russell versus Tara Walsh.

14 Will counsel introduce yourselves and
15 state whom you represent.

16 **MS. LLAGUNO:** Good afternoon. My name is
17 Joy Llaguno, and I represent Plaintiff Stephen
18 Russell with the law firm Hook & Hook.

19 **MR. MOORE:** Yeah. This is Frank Moore,
20 Law Offices of Frank S. Moore. I'm representing Mr.
21 Walsh for purposes of this deposition only.

22 **THE VIDEOGRAPHER:** The court reporter will
23 now swear in the witness.

24 **THE REPORTER:** Mr. Walsh, please raise
25 your right hand. Do you solemnly swear under

1 penalty of perjury that the testimony you're about
2 to give is the truth, the whole truth, and nothing
3 but the truth?

4 **THE DEPONENT:** Yes.

5 **THE REPORTER:** Okay. Counsel, you may
6 proceed.

7 **STEPHEN WALSH**, having been first duly sworn, was
8 examined, and testified as follows:

9 **EXAMINATION**

10 **BY MS. LLAGUNO:**

11 **Q.** Good afternoon, Mr. Walsh. My name is Joy
12 Llaguno. Could you please state your full name for
13 the record?

14 **A.** Stephen Walsh.

15 **Q.** And what is your current address?

16 **A.** 394 Whippoorwill Road, Chappaqua, New
17 York, ZIP Code 10514.

18 **Q.** And are you taking this deposition at that
19 address?

20 **A.** Yes.

21 **Q.** Is anyone in the room with you?

22 **A.** No.

23 **Q.** What device are you using?

24 **A.** I'm using a Chromebook.

25 **Q.** Are there any other programs open on your

1 Chromebook?

2 A. Nope.

3 Q. Are there any documents in front of you?

4 A. Nope.

5 Q. Okay. So during this deposition, you're
6 not allowed to receive any off-screen guidance or
7 instruction. And I'm going to trust that you're not
8 going to do that. Is that agreed?

9 A. Agreed. Is Stephen Russell participating?
10 Is he in your office, by any chance?

11 Q. No. It's just me in the room.

12 A. So he's not -- he's not tuned in anywhere?

13 Q. No, I don't believe so. He may join in
14 later, but currently --

15 A. Well, I -- I think it -- I think that
16 should be clear.

17 Q. Okay. I will -- you will --

18 MR. MOORE: Yeah --

19 BY MS. LLAGUNO:

20 Q. -- you will know when -- if he comes on.
21 He's not on --

22 A. I -- I'm sure he's on right now, but
23 whatever.

24 MR. MOORE: Yeah. As long as -- counsel,
25 as long as -- I mean, because I think it's

1 appropriate -- in fact, I think it's required under
2 California law -- that if someone's attending the
3 deposition, a record must be made of it. So if he
4 does -- even if he's coming into your office to
5 listen, he's got to declare his presence, and he
6 should be on camera.

7 **MS. LLAGUNO:** Right. He is not in my
8 office, and he's not currently logged into this
9 deposition.

10 **MR. MOORE:** Okay.

11 **BY MS. LLAGUNO:**

12 **Q.** So Mr. Walsh, as I was saying, please
13 don't discuss with anyone during the deposition
14 through text message, chat, or email; is that
15 understood?

16 **A.** Yep.

17 **Q.** And if you need a break during the
18 deposition, please let me know. We can do that.
19 I'd like to try to finish as quickly as possible.

20 **But also, just let me know if you'd like**
21 **to take a break. That -- that would be fine. Just**
22 **please let me either finish the question or topic or**
23 **make sure that there's no pending questions before**
24 **we go on break; is that understood?**

25 **A.** Yep. Yes.

1 Q. And during this deposition, I will be
2 sharing my screen with you to these certain
3 documents. Please let me know if you're able to
4 view them, if you'd like me to zoom in or scroll up
5 and down so that you may view the document. If I'm
6 asking you questions about the documents, I'm going
7 to assume you reviewed the document, you understand
8 it, and the answer's you're providing are going to
9 be based on that understanding; is that agreed?

10 A. Agreed.

11 Q. And today, Monica, our court reporter,
12 will be transcribing everything we say. After that
13 -- the deposition is over, she'll produce a
14 transcript of every word that's been spoken today.
15 To make sure we have a clear transcript, we should
16 try our best not to talk over each other. Please
17 let me finish my question before you start to
18 answer, and I will do the same; do you understand?

19 A. Yes.

20 Q. I know in day-to-day life sometimes you
21 think you know the question I'm going to ask, and
22 you answer before I finish asking it. But I please
23 ask you to refrain from doing that so our court
24 reporter will get a clear record. I will try my
25 best to speak slowly and clearly. Please let me

1 finish my questions before responding. And I'm only
2 trying to ensure that the court reporter can get a
3 clear record, understood?

4 A. Yes.

5 Q. For the same reasons -- you've been doing
6 a good job at it -- it's important to use complete
7 words rather than just nodding our head or saying
8 mm-hmm. So try to use complete words, a yes or no,
9 just so the court reporter can get everything on the
10 transcript; do you understand that?

11 A. Yes.

12 Q. I'm also requesting that, if you do not
13 understand a question that I'm asking, please ask me
14 to repeat or rephrase it. If you answer the
15 question, it will be assumed that you did understand
16 that question; is that clear?

17 A. Yes.

18 Q. If you don't know the answer to a
19 question, please feel free to say so, but I'm
20 entitled to your best estimate; is that clear?

21 A. Yes.

22 Q. After your deposition is over, you'll
23 receive a copy of the transcript, and you'll have
24 the opportunity to correct any answers. However,
25 any party may then comment on any changes that you

1 make as they relate to your credibility; is that
2 understood?

3 A. Yes.

4 MR. MOORE: Right here, I want to -- I
5 want to insert, based on what we've done before.
6 Unless Mr. Walsh declares at the end of the
7 deposition that he wants to order a copy, no one
8 from this side is ordering one. So the court
9 reporter will have to make arrangements with Mr.
10 Walsh to afford him the opportunity to review it, as
11 we discussed at Maura Walsh's deposition. Just -- I
12 just want to make that for the record.

13 BY MS. LLAGUNO:

14 Q. Okay. So Mr. Walsh, are you okay with the
15 -- Naegeli, the deposition reporters, to reach out
16 to you by email to get you the --

17 A. Yes.

18 Q. -- okay, to get -- let you to review your
19 transcript?

20 A. (No audible response).

21 Q. Okay. Mr. Walsh, you understand that your
22 testimony today is under oath, and you're sworn to
23 testify truthfully; do you understand?

24 A. Yes.

25 Q. The oath you just took has the same force

1 and effect as if we're sitting in a courtroom with a
2 judge and jury; do you understand that?

3 A. Yes.

4 Q. Is there any reason why you cannot testify
5 truthfully today?

6 A. No.

7 Q. You're not on any medications or any
8 substances that would impact your ability to testify
9 truthfully?

10 A. No.

11 Q. You have no injuries or otherwise -- or
12 anything otherwise that would affect your ability to
13 testify truthfully?

14 A. No.

15 Q. Okay. Thank you.

16 And have you ever been deposed before, Mr.
17 Walsh?

18 A. Yes.

19 Q. How many times?

20 A. Twice, I believe.

21 Q. Okay. When were those times?

22 A. I -- I -- I -- I don't recall. It was so
23 long ago. I have no idea.

24 Q. What was the nature of the lawsuit?

25 A. Do I have to answer that? I mean, I -- I

1 don't see what -- what connection it has to this
2 case.

3 **Q. It's just general, basic questions we ask**
4 **at most depositions.**

5 **A. I -- I -- I'm not going to answer it.**

6 **Q. Could you tell me your role in the**
7 **deposition?**

8 **A. Witness.**

9 **Q. Did you testify at trial and deposition?**

10 **A. Just deposition.**

11 **Q. Okay. Could you tell me what jurisdiction**
12 **the lawsuit occurred?**

13 **A. New York City in New York State.**

14 **Q. Okay. Thank you, Mr. Walsh.**

15 **I'm going to share with you your**
16 **deposition subpoena, which we will mark as Exhibit**
17 **86.**

18 **THE REPORTER: Marked as Exhibit 86.**

19 **(WHEREUPON, Exhibit 86 was marked for**
20 **identification.)**

21 **THE REPORTER: And after the deposition,**
22 **will you send me over the exhibits that will be**
23 **marked --**

24 **MS. LLAGUNO: Yes.**

25 **THE REPORTER: -- Ms. Llaguno? Okay.**

1 Thank you.

2 **BY MS. LLAGUNO:**

3 Q. And Mr. Walsh, can you view this -- can
4 you see the document?

5 A. Yes.

6 Q. Do you recognize this document?

7 A. Not really.

8 Q. Did you review this Attachment 3 to your
9 deposition subpoena?

10 A. I did not, no.

11 Q. So you have not seen these requests for
12 production of documents; is that correct?

13 A. You know, I -- I believe I did, but -- but
14 briefly. And I told Brian Waller that I didn't have
15 any documents related to the case.

16 **MR. MOORE:** Can we establish who Brian is?

17 **MS. LLAGUNO:** He is co-counsel for Steve
18 Russell in New York.

19 **BY MS. LLAGUNO:**

20 Q. So did you do anything to prepare for your
21 deposition?

22 A. I did not.

23 Q. Did you talk to Tara Walsh about this
24 deposition?

25 A. Not what I was going to say during the

1 deposition. Everyone in my family is aware that I'm
2 giving a deposition.

3 **Q. So what did you talk about with Tara**
4 **Walsh?**

5 A. She knows I have a deposition, and she
6 introduced me to Frank and not much else.

7 **Q. Did she ask you to say anything, in**
8 **particular?**

9 A. Nope.

10 **Q. Did Tara Walsh ask you not to say**
11 **anything?**

12 A. Nope.

13 **Q. Did you talk to anybody else about this**
14 **deposition besides your attorney?**

15 A. No. I mean, like I said, my entire family
16 is aware that I'm giving a deposition, the people
17 that live here. It's pretty obvious. But I haven't
18 talked about the content of my deposition.

19 **Q. Okay. Did you review any documents in**
20 **preparing for your deposition?**

21 A. No.

22 **Q. Did you ask to see any documents, or did**
23 **someone provide you documents in preparation for**
24 **this deposition?**

25 A. No.

1 Q. I am going to turn to Attachment 3, which
2 I showed you earlier, in your deposition subpoena.
3 Did you --

4 A. Yep.

5 Q. -- review all of the requests for
6 production listed here?

7 A. They didn't apply.

8 Q. And could you explain? What do you mean
9 they didn't apply?

10 A. Well, I -- I -- I didn't have any
11 documents relating to the case or communications.
12 Or -- so -- but -- but anything else there, yeah, I
13 mean, I -- I -- I've complied. Sure.

14 Q. So you did read Requests for Production 1
15 through 10; is that correct?

16 A. I -- I -- I -- I -- I've read -- I may
17 have. I may have read through it quickly. I
18 believe I did.

19 Q. Okay. And so your position is you did not
20 have any responsive documents in your possession; is
21 that correct?

22 A. That is correct.

23 Q. Where did you search for documents?

24 A. I -- I -- I didn't search for documents
25 because I didn't know that any existed.

1 **Q. How are you able to confirm that nothing**
2 **existed if you didn't do any searches for documents?**

3 A. What -- what -- I -- I don't understand
4 your question. What would I have searched for? I
5 didn't have emails with Russell. I didn't have text
6 messages with Russell. I didn't create any
7 documents to send to Russell. So what -- what
8 exactly are you implying or asking for?

9 **Q. Okay. We can leave it at that. You're**
10 **stating that you did not have any communications,**
11 **text messages, or emails with Stephen Russell.**

12 A. None that I initiated.

13 **Q. And none that are no -- are any of them**
14 **still in your possession?**

15 A. I -- I -- I'm not sure if they're still on
16 my phone or -- no, I -- I don't believe so. I may
17 have some that he sent me. I -- I -- I generally do
18 not respond to him, and I never have.

19 **Q. So sitting here today, you did not search**
20 **your email for responsive documents; is that**
21 **accurate?**

22 A. That is correct.

23 **Q. You didn't search your phone either for**
24 **responsive documents; is that accurate?**

25 A. No. I -- I -- I -- as I said, I knew that

1 I did not initiate documents with Russell. So I --
2 I -- I didn't -- I -- I -- there's nothing to search
3 for.

4 **Q. Okay. I assume you're not in the practice**
5 **of deleting your emails and text message ever so**
6 **often; would that be accurate?**

7 A. No. No. I -- I didn't delete anything.
8 I may still have some that he sent me. But he sends
9 us stuff all the time that I don't respond to.

10 **Q. But messages that are -- that may be**
11 **responsive to the subpoena are still on your phone**
12 **or device or email account?**

13 A. It -- it's possible. It's possible.

14 **Q. Okay. Do you agree to gather -- to search**
15 **for those documents after the deposition ends and**
16 **provide them to your lawyer --**

17 A. No.

18 **Q. -- for production?**

19 A. No.

20 **MS. LLAGUNO:** Okay. I just want to state
21 for the record that this deposition cannot adjourn
22 today because the documents called for in the
23 subpoena were not brought to the deposition.

24 **MR. MOORE:** And I would just add for the
25 record that if they were sent by your client, they

1 were equally available to him. So it would be
2 burdensome on this witness.

3 And you -- you don't get to decide whether
4 the deposition ends or not. A judge does. And so
5 it -- it -- you know, when -- when the only
6 potential record of -- of documents that exist are
7 those that -- created by your client, he's equally
8 in possession of those records, and he can provide
9 them himself.

10 **MS. LLAGUNO:** Right. But that is not just
11 the scope of these documents.

12 **MR. MOORE:** I'm -- I'm not -- I'm not
13 going to argue with you. Just that's my statement
14 for the record.

15 **MS. LLAGUNO:** Thank you, Mr. Moore. And
16 I'd like to remind you again I'm please asking you
17 to refrain from --

18 **MR. MOORE:** I'm not -- I'm not going to
19 listen to this babble every single time. We're not
20 going to get into you arguing with me. Just move
21 along. I've stated my point for the record. I'm
22 making a record.

23 **MS. LLAGUNO:** Okay. And I'm doing the
24 same. Respectfully, I'm letting you finish your
25 objections. Please let me finish my own statements.

1 I'd really appreciate it.

2 **THE REPORTER:** And yes, counsel, as a
3 reminder, please do speak one at a time so the
4 record will be clear.

5 **MR. MOORE:** Don't argue with me, and then
6 we'll be fine.

7 **BY MS. LLAGUNO:**

8 A. Joy, can you let me know the nature of the
9 cases and the charges in the case as they apply to
10 me and me as a witness?

11 **Q. So in your deposition subpoena, we have**
12 **attached the pleadings in the case. Did you have a**
13 **chance to review those?**

14 A. Yes.

15 **Q. And so you are aware of the claims and**
16 **counterclaims in the case; is that correct?**

17 A. Yeah. I just want to make sure that you
18 are because the -- you know, the -- the questioning,
19 I -- I -- I -- you know, I'm going to answer all
20 questions as they apply to the case, and I am not
21 going to answer questions about my personal life or
22 my family.

23 **Q. Okay, Mr. Walsh. I just wanted to note --**
24 **but I'm sure your counsel has explained -- the scope**
25 **of discovery may go beyond the specific claims in**

1 the case. And it also relates to evidence that may
2 lead to other admissible evidence.

3 MR. MOORE: Don't make that assumption,
4 counsel, because, as you know, there's a -- I'm
5 going to read this into the record now because it's
6 germane. But with any family, and particularly
7 those in New York, they have a right to familial
8 privacy. That was recognized --

9 MS. LLAGUNO: And --

10 MR. MOORE: I'm -- I'm going to -- I'm
11 going to make this record, so just bear with me.

12 That right was recognized by the Supreme
13 Court of the United States in Prince v.
14 Massachusetts at 321 U.S. 158 in 1944.

15 In New York, the Matter of A.M.61 A.D.2d
16 426 in 1978 recognized the familial privilege
17 between family members.

18 Since then, People versus Fitzgerald in
19 New York, 101 Misc.2d 712, New York County Court in
20 1979, extended that familial privilege among adult
21 children.

22 Just the general law in the United States,
23 based on U.S. Supreme Court precedent, Allstate
24 Insurance Company versus Hague, a 1981 case, 449
25 U.S. 302, the Supreme Court held that federal system

1 -- the federal system contemplates that individual
2 states may adopt distinct policies to protect their
3 own residents.

4 In People versus Conklin, a California
5 Supreme Court case, it was recognized -- and the --
6 the cite for there was 12 Cal.3d 259 -- Congress
7 intended that the states be allowed to exact more
8 restrictive laws designed to protect the right of
9 privacy.

10 To the extent there is any conflict of law
11 issues that's -- arises in this case with regard to
12 rights to privacy, in the -- in Kearney v. Salomon
13 Smith Barney, Inc., a 2006 case at 39 Cal4th 95, in
14 -- in analyzing choice of law issue, California
15 courts apply the governmental interest analysis
16 under which a court carefully examines the
17 governmental interest or purposes served by the
18 applicable statute or rule of law of each of the
19 affected jurisdictions to determine whether there is
20 a true conflict. If such a conflict is found --
21 found to exist, the court analyzes the
22 jurisdictions' respective interest in -- to
23 determine which jurisdiction's interest would be
24 more severely impaired if that jurisdiction's law
25 were not applied in the particular context presented

1 by the case.

2 Those are the authorities by which right
3 to familial privacy is being asserted by Mr. Walsh
4 in this case, as I understand it. That's my
5 statement.

6 **MS. LLAGUNO:** And Frank, I -- I let you
7 finish. But I have stated before on the record I
8 don't -- do not think it appropriate to have a long
9 speaking objection taking up nearly three minutes of
10 our deposition time. That's for briefing in front
11 of the court and --

12 **MR. MOORE:** I'm not going to argue with
13 you. I've made my statement. You can move on --

14 **MS. LLAGUNO:** I would --

15 **MR. MOORE:** -- move --

16 **THE REPORTER:** Sorry --

17 **MS. LLAGUNO:** Mr. Moore --

18 **THE REPORTER:** Stop. Please -- please do
19 speak one at a time, or the record won't be clear.

20 Please restate your statement you were in
21 the middle of, Ms. Llaguno. Thank you.

22 **MS. LLAGUNO:** Thank you. I was just
23 telling Mr. Moore, reminding him, I let you finish
24 your speaking objection even -- although it was
25 improper. Please let me finish my statements before

1 interrupting me, as the court reporter has pointed
2 out. You continue to do that. I'd really
3 appreciate it if you refrain from doing that for the
4 remainder of this deposition.

5 **MR. MOORE:** I'm not going to argue with
6 you, so stop arguing.

7 **MS. LLAGUNO:** The court reporter pointed
8 it out, Mr. Moore. But thank you.

9 **BY MS. LLAGUNO:**

10 **Q. Mr. Walsh, I am now going to show you what**
11 **we're going to mark as Exhibit 87. And can you see**
12 **this document, Mr. Walsh?**

13 **A. Yes.**

14 **Q. Do you recognize this document?**

15 **A. I -- I -- I guess so. I mean, I've gotten**
16 **so many of them from him that I kind of gloss over.**
17 **But it looks familiar, I would say.**

18 **Q. And this is a document Decision & Order**
19 **from the Supreme Court of the State of New York**
20 **County of Westchester. Do you -- did you receive**
21 **this document?**

22 **A. Yes.**

23 **Q. And you reviewed the court order**
24 **compelling your appearance here today?**

25 **A. Yes. That's why I'm here.**

1 Q. Okay. Thank you.

2 And -- oops. I want to point your
3 attention to the three paragraphs below where it
4 says, "Accordingly, it is ordered." Could you
5 please read that -- review those to yourself, Mr.
6 Walsh?

7 A. It's kind of difficult for me to read the
8 print.

9 Q. Let me -- I can zoom in for you. Is that
10 better?

11 A. Yes.

12 THE REPORTER: And this document is marked
13 as Exhibit 87.

14 (WHEREUPON, Exhibit 87 was marked for
15 identification.)

16 BY MS. LLAGUNO:

17 A. Okay.

18 Q. All right.

19 A. I've read it.

20 Q. And is that in line with your
21 understanding of your appearance here today, Mr.
22 Walsh?

23 A. Yes.

24 Q. Okay. Thank you.

25 And I am going to show you now what we're

1 going to mark as Exhibit 88.

2 THE REPORTER: It will be marked as
3 Exhibit 88.

4 (WHEREUPON, Exhibit 88 was marked for
5 identification.)

6 BY MS. LLAGUNO:

7 Q. Oops. Sorry.

8 Okay. This is Exhibit 88. Do you
9 recognize this document, Mr. Walsh?

10 A. I can't say I -- not necessarily, no.

11 Q. Did you prepare this document?

12 A. I believe I may have, yeah, assisted on
13 preparing it, yes.

14 Q. And you authorized the filing of this
15 document with the New York court?

16 A. Yes.

17 Q. And this is your -- is this your signature
18 at the bottom of this document?

19 A. It -- it appears to be, yes.

20 Q. Okay. Thank you.

21 And I'm -- Mr. Walsh, I'm just going to
22 ask you a few background questions about your
23 education and professional history. What is the
24 highest level of education you attained?

25 A. I don't see the relevance.

1 Q. It's just background just for foundation.

2 A. I -- I -- undergraduate college degree.

3 Q. And when did you -- I'm sorry -- when did
4 you obtain your degree?

5 A. 1982.

6 Q. What was your degree in?

7 A. Business administration.

8 Q. Can you give me an overview of the jobs
9 you've had in the last five years?

10 A. Absolutely not.

11 Q. You -- just to clarify, you do not want to
12 provide an answer for the jobs you've had in the
13 last five years?

14 A. That's correct.

15 Q. And you live in Chappaqua, New York; is
16 that right?

17 A. Yes.

18 Q. How long have you lived there?

19 A. We've lived in our current house for 27-
20 plus years.

21 Q. And who else lives with you at your home
22 on Whippoorwill Road?

23 A. My son, Brendan; my daughter, Kiara; my
24 daughter, Tara; and my granddaughter, Evie.

25 Q. Does anybody else live in any other part

1 of the property?

2 A. No.

3 Q. So with the exception of Brienne Walsh,
4 all your children still live with you at
5 Whippoorwill Road; is that accurate?

6 A. I -- I just gave you the answer to your
7 question.

8 Q. Okay. You mentioned that Tara Walsh and
9 your granddaughter, Evie, are living with you. How
10 long have they been living there?

11 A. Since, roughly, June of 2018 -- no, since
12 June of 2018, not roughly -- early June. I don't
13 know the exact date. But ...

14 Q. And from June of 2018, they lived with you
15 consistently?

16 A. That is correct.

17 Q. Does Tara pay you any rent?

18 A. She does not.

19 Q. Does she help with any house expenses such
20 as groceries?

21 A. She buys her own groceries.

22 Q. Do you talk about this legal proceeding
23 with Tara Walsh?

24 A. We have -- yeah, I mean, we -- we -- of
25 course we talk about the legal cases because they

1 seem to be numerous and ongoing and forever and
2 because we have strange people knocking on our doors
3 at all hours of the night. We have police here.
4 We've had a sheriff with a gun, who I didn't know
5 was a sheriff, knocking on our back door. So
6 there's -- yes. Do we talk about it? Yes because
7 it's constant and it's -- and they've tormented our
8 family for three years. And Russell has knowingly
9 done this, and -- and that's -- so do we talk about
10 the case? It's impossible not to talk about the
11 case.

12 **Q. Do you ever give Tara advice with respect**
13 **to this proceeding?**

14 A. I -- in -- specifically, no. Generally,
15 it's possible.

16 **Q. And can you give me little details on what**
17 **you've --**

18 A. No.

19 **Q. -- advised her?**

20 A. No, I can't. I don't even know what I've
21 advised her.

22 **Q. And I just want to note briefly. I'm**
23 **going to refer to your family members, just to avoid**
24 **any confusion, by their first names moving forward.**
25 **Please let me know you understand if I'm speaking**

1 about Tara, Maura, Brendan, and Brienne, I'm
2 referring to your family members; is that clear?

3 A. Yes.

4 Q. And does -- do you know if Tara Walsh
5 currently has a job?

6 A. She does.

7 Q. And what does she do?

8 A. She does marketing --

9 Q. And --

10 A. -- but that's as much as I'll answer.

11 Q. -- do you know what company she works for?

12 A. No.

13 Q. And do you know how long she has had it?

14 A. No.

15 Q. Do you know if she started the company?

16 A. No.

17 Q. Do you know if her -- if the company she's
18 working for -- I'm sorry. Scratch that. Let me
19 rephrase.

20 Do you know how successful her -- the
21 company is financially?

22 A. No.

23 Q. Do you know if Tara has health insurance?

24 A. I believe she has Affordable Care Act
25 insurance.

1 Q. So you mentioned that you allow Tara to
2 live with you rent-free. Do you support her
3 financially in any other ways?

4 A. No.

5 Q. Do you know if she has any other sources
6 of income besides what you mentioned?

7 A. I do not.

8 Q. Okay. One of the issues in this case is
9 Tara giving Steve Russell drugs without his
10 knowledge or consent. Tara has admitted to putting
11 multiple drugs into Steve Russell's drink without
12 him knowing. Are you familiar with Tara Walsh doing
13 that?

14 MR. MOORE: Objection; misstates the
15 evidence; assumes facts not in evidence. You're not
16 entitled to summarize the -- what you believe to be
17 the evidence as a predicate for a question.

18 So Stephen, do you not have to accept as
19 true whatever she is representing. But you can
20 answer.

21 BY MS. LLAGUNO:

22 A. I have no knowledge of her doing that.

23 Q. Has Tara Walsh ever spoken with you about
24 her drugging Steve Russell?

25 A. Never.

1 Q. So I am going to show you now what we're
2 going to mark at -- or what was previously marked as
3 Exhibit 34.

4 Exhibit -- this exhibit that was
5 previously marked as Exhibit 34 bear -- bears the
6 Bates stamp Walsh 000168 and was produced by Tara
7 Walsh in this litigation. Do you recognize this
8 document, Mr. --

9 A. No, I do not.

10 Q. And I am going to show you now what we're
11 going to -- what was previously marked as Exhibit
12 35.

13 Are you able to view the document, Mr.
14 Walsh?

15 A. Yes.

16 Q. And do you recognize this document?

17 A. No.

18 Q. On -- this is a declaration that Tara
19 Walsh submitted to the court. I am going to scroll
20 down to paragraph 22 of Ms. Walsh's declaration.
21 Could you please review this paragraph 22 on page 6?

22 A. Okay.

23 Q. And do these documents refresh your
24 recollection on any -- on the Tara Walsh drugging
25 Steve Russell?

1 A. No.

2 **MR. MOORE:** That lacks foundation. He's
3 never established that he has any knowledge of this.
4 So it couldn't refresh his recollection by its very
5 definition.

6 **THE DEPONENT:** Agreed.

7 **BY MS. LLAGUNO:**

8 **Q.** And so one of the drugs Tara Walsh drugged
9 Steve Russell with was lithium. Do you know if Tara
10 Walsh --

11 **MR. MOORE:** Wait a -- hold on. You -- you
12 -- you have no evidence of that. That misstates the
13 evidence. It's argumentative; lacks foundation.

14 You don't have to accept anything she's
15 saying with that regard. There is no evidence of
16 that.

17 **MS. LLAGUNO:** Thank you, Mr. Moore. I'd
18 like to remind you again you can state your
19 objection --

20 **MR. MOORE:** No. I -- I remind you again
21 to stop misrepresenting the record.

22 **MS. LLAGUNO:** Mr. Moore, I --

23 **MR. MOORE:** That's what you should do.

24 **THE REPORTER:** Stop. Counsel, please
25 speak one at a time, or your record will not be

1 clear. So thank you. I will not interrupt again.

2 Or ...

3 **MS. LLAGUNO:** Mr. Moore, as the court
4 reporter has pointed out again, can you please let
5 me --

6 **MR. MOORE:** Stop arguing with me.

7 **MS. LLAGUNO:** -- before interrupting. Mr.
8 Moore --

9 **MR. MOORE:** Stop arguing with me. Just --
10 just don't misrepresent the record, please.

11 **MS. LLAGUNO:** Mr. Moore, please let me
12 finish my statements before stating something else.
13 The court reporter has already pointed out numerous
14 times that you're interrupting me.

15 **BY MS. LLAGUNO:**

16 **Q. Mr. Walsh, do you know if Tara Walsh has**
17 **access to lithium?**

18 **A.** Not to my knowledge.

19 **Q. Do you know if Tara Walsh has access to**
20 **Seroquel?**

21 **A.** I have no idea.

22 **Q. And have you ever seen Tara Walsh put**
23 **drugs in Steve Russell's drink without him knowing?**

24 **A.** Of course not.

25 **Q. Have you ever seen Tara Walsh put -- or**

1 give drugs to anyone else without their knowledge or
2 consent?

3 A. Absolutely not.

4 Q. And do you know if Tara Walsh gave Steve
5 Russell Seroquel in New York?

6 A. Absolutely not.

7 Q. And do you know if Tara Walsh gave Steve
8 Russell Seroquel in San Francisco?

9 A. No. Absolutely not.

10 Q. Would Tara Walsh been -- have been able to
11 get access to lithium from her mother, Maura Walsh?

12 MR. MOORE: Calls for speculation.

13 BY MS. LLAGUNO:

14 A. Absolutely not.

15 Q. Do you know if Tara Walsh was able to get
16 access to lithium from her mother, Maura Walsh?

17 A. Absolutely not. I -- it -- I -- I don't
18 recall ever seeing lithium in -- in our household.

19 Q. Do you know if Tara Walsh has a
20 prescription from a doctor for Seroquel?

21 A. I have no idea.

22 Q. Do you know if Tara Walsh has a
23 prescription from a doctor for lithium?

24 A. I have no idea.

25 Q. Do you have any knowledge of any

1 **prescriptions Tara has for any other prescription**
2 **medication?**

3 A. I -- I -- I don't know what prescription
4 she has. It's her business. I don't ask her.

5 **Q. Do you have an understanding of why Tara**
6 **Walsh would drug Stephen Russell?**

7 A. No.

8 **MR. MOORE:** Assumes facts not in evidence.

9 **BY MS. LLAGUNO:**

10 **Q. You can respond, Mr. Walsh.**

11 A. I do not, no.

12 **Q. Has Tara Walsh ever told you that she**
13 **drugged Stephen Russell because she wanted him to go**
14 **to sleep?**

15 A. No.

16 **Q. Do you have any knowledge of Tara Russell**
17 **-- I'm sorry. Scratch that.**

18 **Do you have any knowledge of Tara Walsh**
19 **explaining that she drugged Stephen Russell because**
20 **of self-defense?**

21 A. No. Who -- what -- where -- where are you
22 reading from? You're not reading for -- are you
23 reading from a screen, or are you being fed these
24 questions as we speak?

25 **Q. I'm sorry. What was that?**

1 A. You appear to be looking at something when
2 you -- when you ask the questions. Are you being
3 fed these questions from another source like Stephen
4 Russell, or are these questions you have prepared?
5 Because it looks to me as if you're reading the
6 questions before you ask me the questions.

7 Q. I do have an outline of categories that I
8 prepared of questioning for you. No one is feeding
9 me questions live, if that's your question.

10 A. Yeah. That is my question.

11 Q. So you do not have an idea from -- or --
12 or -- sorry. Let me rephrase.

13 You do not have an idea of where Tara got
14 the idea to give Steve Russell prescription drugs --

15 A. I have --

16 Q. -- without his knowledge.

17 A. -- no idea whatsoever. I -- I have no
18 knowledge of Tara Walsh ever drugging Steve Russell
19 in any manner, shape, or form.

20 Q. Okay. And did you ever give Tara Walsh
21 prescription medication as a child?

22 MR. MOORE: Objection. What -- what does
23 this --

24 THE DEPONENT: Yeah --

25 MR. MOORE: -- have to do with anything?

1 And it's -- it invades the privacy of this family.

2 **THE DEPONENT:** Yeah. I'm -- I'm not --

3 **MR. MOORE:** I'm not sure --

4 **BY MS. LLAGUNO:**

5 A. I'm not answering it.

6 **MS. LLAGUNO:** And so just to clarify, Mr.
7 Moore, you're directing your client not to answer
8 the --

9 **MR. MOORE:** I'm not -- he -- he -- he --
10 he just --

11 **THE DEPONENT:** I -- I -- I --

12 **MR. MOORE:** -- indicated --

13 **THE DEPONENT:** -- I am making the
14 decision.

15 **MR. MOORE:** He indicated he's made that
16 decision on his own. I'm -- I'm asserting
17 objections.

18 **MS. LLAGUNO:** And Mr. Moore, can you
19 explain the basis of your -- of your --

20 **MR. MOORE:** He -- he -- he doesn't -- he --
21 - I believe it's privacy; is that correct?

22 **THE REPORTER:** Stop. Please repeat --

23 **THE DEPONENT:** Yeah.

24 **THE REPORTER:** -- the last three
25 statements.

1 And as a reminder, please speak one at a
2 time. Your record will not be clear otherwise.

3 **MS. LLAGUNO:** Mr. Moore, I've repeated it
4 three or four --

5 **MR. MOORE:** Can you stop? Just -- just
6 move on.

7 **MS. LLAGUNO:** -- in the --

8 **MR. MOORE:** Stop.

9 **MS. LLAGUNO:** Please stop interrupting --

10 **MR. MOORE:** Stop.

11 **MS. LLAGUNO:** -- me.

12 Mr. Moore, the court reporter is having a
13 hard --

14 **MR. MOORE:** Stop.

15 **MS. LLAGUNO:** -- time. And she's pointed
16 it out.

17 **MR. MOORE:** Just move on. Ask --

18 **MS. LLAGUNO:** I'm --

19 **MR. MOORE:** -- the question.

20 **MS. LLAGUNO:** This is my deposition, and
21 I'm able to make a record. I'm explaining to you
22 again on the record. Please stop interrupting me.
23 Let me finish my statement before you speak.

24 **MR. MOORE:** Ask the question.

25 **BY MS. LLAGUNO:**

1 Q. Do you know if anybody else in your
2 household is prescribed lithium?

3 A. Not to my knowledge.

4 Q. Do you know if anybody else in your
5 household is prescribed Seroquel?

6 A. Not to my knowledge.

7 Q. Thank you. I'm now going to show you what
8 we're going to mark as Exhibit 89.

9 THE REPORTER: Marked as Exhibit 89.

10 (WHEREUPON, Exhibit 89 was marked for
11 identification.)

12 BY MS. LLAGUNO:

13 Q. And Mr. Walsh, do you recognize these text
14 messages?

15 A. I do not.

16 Q. And I will scroll down so you can read the
17 text messages. Do you believe these are text
18 messages between you and Steve Russell?

19 A. It's possible.

20 Q. As I'm scrolling down, please review these
21 text messages.

22 A. The ones in green are a little difficult
23 to read.

24 Q. I can scroll in for you -- or zoom in for
25 you. Is that better?

1 A. Yeah, kind of.

2 Q. Let me know. There are, I think -- I
3 believe seven pages total --

4 A. Okay.

5 Q. -- of these text messages.

6 A. Okay.

7 MR. MOORE: I'm just not clear what this
8 is, and I don't know --

9 MS. LLAGUNO: Mr. Moore, please --

10 MR. MOORE: It's not very apparent what
11 this is because there's --

12 THE DEPONENT: I -- I -- Frank, I'm okay.
13 I mean, there's --

14 MR. MOORE: Okay. All right.

15 THE DEPONENT: I -- I -- I have nothing to
16 hide here or anywhere else. So ...

17 MR. MOORE: That's fine. I just would
18 notice that one of the texts says, "As a mother,"
19 and -- and you're certainly not a mother. So I -- I
20 don't know who the author is of some of this stuff.

21 MS. LLAGUNO: Mr. Moore, again --

22 THE DEPONENT: Yeah. I -- I noticed that,
23 too.

24 MS. LLAGUNO: -- please stop with your
25 improper speaking objections and coaching the

1 witness. Let --

2 **MR. MOORE:** No. I'm not coaching the
3 witness. The problem is you throw --

4 **MS. LLAGUNO:** I'm asking --

5 **MR. MOORE:** -- something up here and did -
6 - you didn't --

7 **MS. LLAGUNO:** -- I'm asking --

8 **MR. MOORE:** -- establish a foundation for
9 it.

10 **MS. LLAGUNO:** Mr. Moore, I'm asking him to
11 review the text messages so we can establish that
12 foundation. Please stop interrupting, and please
13 stop with your improper speaking objections.

14 **BY MS. LLAGUNO:**

15 **Q. Mr. Walsh, are you done reviewing these**
16 **text messages?**

17 **MR. MOORE:** I don't know how you could
18 possibly have reviewed all of that. It --

19 **THE DEPONENT:** Well --

20 **MR. MOORE:** I've only seen one -- one page
21 for a few minutes and --

22 **MS. LLAGUNO:** We're on --

23 **MR. MOORE:** -- there's all kinds of pages
24 on this thing.

25 **THE DEPONENT:** Frank, again, I'm -- I'm --

1 I'm fine. I -- I --

2 MR. MOORE: Okay.

3 THE DEPONENT: I mean, I have --

4 MR. MOORE: All right.

5 THE DEPONENT: -- nothing -- nothing to
6 hide. So ...

7 MR. MOORE: All right.

8 BY MS. LLAGUNO:

9 Q. Ms. Walsh, did -- Mr. Walsh, did you want
10 me to go to another page of the text message, or are
11 you able --

12 A. No.

13 Q. -- to review them? Were you able to
14 review all of them?

15 A. No. I -- I -- I do want you to ask your
16 questions.

17 Q. Did you review the text message I'm
18 showing you?

19 A. For the most part, yes.

20 Q. Do you recognize these text messages?

21 A. I -- I can't say I do.

22 Q. So these text messages are between you and
23 Steve Russell --

24 MR. MOORE: No. Lacks foundation.

25 MS. LLAGUNO: Mr. Moore, please --

1 **THE REPORTER:** Again, stop. Stop. We can
2 go off the record if you cannot speak one at a time,
3 or the record will not be clear. Please, again --

4 **MR. MOORE:** Lacks --

5 **THE REPORTER:** -- refrain from speaking
6 over each other.

7 **MR. MOORE:** Lacks foundation; assumes
8 facts not in evidence.

9 **THE REPORTER:** All right. And Ms. --

10 **MR. MOORE:** You have not predicated this.

11 **THE REPORTER:** All right. Great.

12 Ms. Llaguno, can you please repeat your
13 question?

14 **MS. LLAGUNO:** I was ask -- thank you,
15 Monica.

16 **BY MS. LLAGUNO:**

17 **Q.** Mr. Walsh, do you recognize these text
18 messages?

19 **A.** No.

20 **Q.** These text messages are between you and
21 Steve Russell from Steve Russell's phone.

22 **MR. MOORE:** I will object as
23 mischaracterizing the evidence. There's no
24 foundation for it. There's no foundation for this
25 document. You cannot state what it is without a

1 witness actually establishing the foundation of what
2 it is.

3 **MS. LLAGUNO:** At deposition, I am able to
4 state what it is and ask him questions about the
5 document.

6 **MR. MOORE:** Again -- again, this is a
7 deposition to preserve trial testimony. I'm making
8 objections on foundational basis. This has not been
9 properly authenticated.

10 **MS. LLAGUNO:** And again, I've explained to
11 you this is a deposition, and I am able to ask
12 questions about documents regardless of their
13 admissibility at this --

14 **MR. MOORE:** But you're -- but you're just
15 wrong on the law. So that's just a problem. You --
16 you seem not to get it in your head that you're
17 wrong on the law.

18 **MS. LLAGUNO:** Mr. Moore, again, I'll ask
19 you then state your objections succinctly. You
20 don't have to attack me on the record.

21 **BY MS. LLAGUNO:**

22 **Q. Mr. Walsh, would you agree that you and**
23 **Steve Russell communicated frequently while Tara**
24 **Walsh was in San Francisco in 2018?**

25 **A. Frequently? No, definitely not**

1 frequently.

2 Q. Did you -- but you did communicate; is
3 that correct?

4 A. Yes, I did.

5 Q. And did you communicate with Steve Russell
6 regarding Tara's mental health issues during this
7 time?

8 A. They were -- he -- he expressed his
9 opinion of her situation. And you know, I was -- I
10 was open to communicating with him because I knew
11 the situation she was in was pretty horrific because
12 I had witnessed Mr. Russell in psychotic episodes
13 before, and we did not want Tara in San Francisco
14 with the baby. We were very concerned about the
15 baby. So yeah, I -- I tried to keep open
16 communication with Stephen Russell because I thought
17 it was -- it was essential.

18 Q. And Mr. Walsh, do you have any psychiatric
19 training?

20 A. Well, if -- if I was to see a man walking
21 down Fifth Avenue naked playing a violin, I wouldn't
22 need psychiatric counseling to think that there was
23 something wrong.

24 Q. But you did not witness someone walking
25 down naked down Fifth Avenue playing the violin --

1 A. I -- I witnessed someone drilling holes in
2 walls, running wires, painting mirrors, painting
3 walls, hearing voices. So you -- you make the
4 determination.

5 Q. And your statement today is that you
6 witnessed Steve Russell hearing voices and drilling
7 holes; is that accurate?

8 A. Yes, absolutely, amongst -- among other
9 things.

10 Q. And could you give me details on the other
11 things you witnessed?

12 A. Well, he had -- he had -- I guess he was
13 fortunate enough to acquire money through some
14 investment, I believe, with Uber. But he -- he had
15 a lot of money at his disposal, and he had a full
16 complement of security guards following him
17 everywhere with the -- I guess with the explanation
18 that, you know, the Ukrainians were trying to kill
19 him. I -- I don't know what -- if there are other
20 ethnic groups. But certainly, the Ukrainians were
21 mentioned. And he was paranoid, and his behaviors
22 were erratic, to say the least.

23 So yeah. I mean, I -- I -- I -- I
24 witnessed Stephen Russell acting absolutely bizarre,
25 so if that answers your question.

1 Q. And were you aware that Stephen Russell
2 had these business dealings in Ukraine?

3 A. I did not. I did not.

4 Q. And were you aware that Stephen Russell
5 had security guards who purported to be former FBI
6 and CIA tell him that there were foreign threats
7 against him?

8 A. I --

9 MR. MOORE: Objection; lacks foundation.

10 BY MS. LLAGUNO:

11 A. I -- I -- what -- what -- I don't -- I
12 don't -- I wouldn't have believed him if he did, but
13 I don't --

14 Q. You --

15 A. -- I don't believe he ever told me that,
16 no. He -- I -- it -- it's kind of like, you know,
17 if -- if someone's telling you that the sun rises in
18 the west, you could potentially humor a little and -
19 - and nod your head. But you don't have to agree
20 with them.

21 Q. Okay. And so these text messages, would
22 you agree that Steve gave you routine updates on
23 Tara Walsh during her time in San Francisco in 20-
24 --

25 A. No. I -- I -- I wouldn't say that. No.

1 No. I -- I think there were times of crisis. And
2 you know -- and -- and that's when he would
3 communicate, when he believed there was crisis. But
4 you know, I was also communicating with Tara, and
5 she was telling me some pretty horrific things about
6 Russell. So I -- I -- I -- I -- quite frankly, I --
7 I took both sides with a grain of salt. I wasn't
8 sure what was accurate and what was not accurate.
9 But I certainly didn't take Stephen Russell's
10 correspondences as -- as factual or accurate either.

11 **Q. And did you ever tell that to Stephen**
12 **Russell?**

13 A. No.

14 **Q. So I am going to point you to this text**
15 **message where it says you state, "Excellent. Thank**
16 **you Steve, we appreciate your assistance and**
17 **understanding. And thank you for the timely**
18 **updates."**

19 A. Yes.

20 **Q. Would you say you were not being genuine**
21 **when you thanked Steve Russell for the timely**
22 **updates then?**

23 A. I would say --

24 **MR. MOORE:** Objection --

25 **BY MS. LLAGUNO:**

1 A. -- I -- I would be less than 100 percent
2 genuine, yes.

3 Q. And what was your reason for responding to
4 Steve Russell in that way?

5 A. To kind of defray the situation and -- and
6 make sure that Tara and the baby were safe and keep
7 the lines of communication open for that purpose.

8 Q. And you stated that you also took Tara
9 Walsh's statements during this time with a grain of
10 salt. What was your reason for doing so?

11 A. Well, Tara had, you know, against our
12 wishes, gone out to San Francisco even after we had
13 witnessed, you know, the situation with Stephen
14 Russell. So I was -- you know, we -- we -- we were
15 disappointed and -- and angry with her for -- for
16 going out there in the first place. So I wasn't
17 going to allow her to play the victim by telling me
18 that, you know, this or that was happening. So I --
19 I -- I -- I -- I didn't necessarily pay a lot of
20 attention to -- to that stuff either. I -- I
21 started to pay more attention when things seemed to
22 get worse.

23 Q. And do you believe Tara Walsh plays the
24 victim regularly?

25 A. No, no. But I think people, like, on

1 occasion, make bad decisions and then try to justify
2 them.

3 **Q. And in the past, has Tara Walsh played the**
4 **victim with any other -- in any other occasion?**

5 A. Not that I'm aware of.

6 **Q. Okay. And when you stated that you took**
7 **Tara Walsh's statements with a grain of salt, could**
8 **you explain to me what that -- what you mean by**
9 **that? Did you take it that her statements could be**
10 **not 100 percent truthful?**

11 A. No. That's -- that's not what I would
12 say. I would say that, you know, I -- I -- I -- it
13 was hard for me to determine what was going on out
14 there. And -- and I -- I felt like I didn't fully
15 comprehend the situation out there. So I -- I was
16 trying to get more information.

17 **Q. At the time, what was your understanding**
18 **of the situation in San Francisco?**

19 A. My understanding as -- from -- from what I
20 recall, was that there were two apartments. And the
21 security was staying in one apartment, and Russell
22 and Tara and the baby and a nurse or -- or -- or a
23 nanny in another apartment. And she wasn't really
24 going outside, and the baby wasn't going outside.
25 And you know, security was checking in all the time,

1 and they were following her when she did go outside.

2 And he had painted over the windows.

3 So it -- it was more of the lunacy that I

4 witnessed in Brooklyn. That was my understanding.

5 And -- and I believe that, as parents, we -- we were

6 like -- you know, we wanted to tell her -- and --

7 and maybe we did -- that we told you not to do this,

8 and -- and you did it anyway. So you know, we're --

9 we're -- we're really not happy with -- with this,

10 and -- and it's -- it's as horrific as we thought it

11 would be.

12 **Q. So it's fair to say you were upset with**

13 **Tara for going to San Francisco against --**

14 **A. Oh, absolutely. Yes.**

15 **Q. And did you --**

16 **THE REPORTER:** Sorry. Ms. -- my -- my

17 apologies, Ms. Llaguno. Your question got cut off.

18 Can you just repeat it again?

19 **MS. LLAGUNO:** I think I said is it fair to

20 say that you were upset with Tara Walsh for moving

21 back to San Francisco against your wishes.

22 **THE REPORTER:** Thank you.

23 **BY MS. LLAGUNO:**

24 **Q. Sorry, Mr. Walsh. I don't want to be**

25 **rude. But for the court reporter's sake, just try**

1 to let me finish the -- until the end of the state -
2 - the question before you answer.

3 And during this time Tara Walsh was in San
4 Francisco, did you believe Steve Russell was
5 genuinely concerned about Tara Walsh's wellbeing?

6 A. No.

7 Q. And why do you think that?

8 A. Because I -- I don't think Steve Russell
9 is an honest or sincere person.

10 Q. Do you believe Tara to be an honest and
11 sincere person?

12 A. Yes.

13 Q. Although you've stated that you take her
14 statements with a grain of salt; is that accurate?

15 A. I -- I -- I did say that, and I believe I
16 also explained why I said that.

17 Q. And through your communications with Steve
18 Russell, you don't believe he -- Steve Russell
19 wanted to find solutions to the issues Tara was
20 going through?

21 A. I don't know if you can hear me, but the
22 video seems to have stalled.

23 Q. Oh.

24 A. Right.

25 Q. I -- I can repeat it.

1 **Mr. Walsh, do you believe Steve Russell**
2 **wanted to find solutions to the issues Tara was**
3 **going through in San Francisco?**

4 A. No, not really.

5 **Q. Then what do you believe was the reason**
6 **behind him texting you timely updates regarding Tara**
7 **Walsh's status?**

8 A. I -- I -- I think he wanted to justify his
9 own actions and -- and kind of transfer the -- the --
10 - the blame to Tara whereas because he knew that
11 Tara was telling us that he was doing some really
12 crazy things.

13 **Q. During this time, what was your**
14 **understanding of what Tara was going through?**

15 A. It -- it sounded to me like it was a
16 really horrific situation with -- with a person who
17 is genuinely unstable kind of dictating and -- and
18 controlling the environment.

19 **Q. And Steve Russell texted you that "Tara**
20 **fired her doctor" and that Tara stated that "She has**
21 **been planting stories of abuse and mental illness**
22 **for months, and I would regret breaking up with her**
23 **and that she intended to deny me of my rights as a**
24 **father."** Did Tara ever state the same to you?

25 A. No.

1 Q. Tara never discussed with you that she was
2 seeing psychiatric doctors in San Francisco?

3 A. I -- I -- I don't recall whether she did
4 or not.

5 Q. Did Tara ever state to you that she had
6 fired her psychiatrist in San Francisco?

7 A. No.

8 Q. Do you believe Tara was planting stories
9 of abuse and mental illness to use against Steve
10 Russell?

11 A. No.

12 Q. Do you know who Matan Gavish is?

13 A. I know him, not very well.

14 Q. How do you know him?

15 A. I've met him through Tara. He's been at
16 our house once or twice.

17 Q. So Tara texted Matan Gavish in February of
18 2018 that, if she sued Steve for child support, she
19 would "get, like, 2-K a month, which is not enough
20 to live off of." And she said, "I'm better
21 pretending I want to be with him and getting the
22 most while I can than leaving him for good." Did
23 she ever express similar thoughts about Steve
24 Russell to you?

25 MR. MOORE: Objection --

1 **BY MS. LLAGUNO:**

2 A. No.

3 **MR. MOORE:** -- lacks foundation --

4 **THE DEPONENT:** Yeah. That --

5 **MR. MOORE:** -- assumes facts not in
6 evidence.

7 **BY MS. LLAGUNO:**

8 A. That has nothing to do with me and no.

9 **Q. Just to clarify, you said she never -- you**
10 **testified she did not express similar thoughts to**
11 **you; is that correct?**

12 A. No. She did not. That's correct.

13 **Q. Tara also texted Matan Gavish that she**
14 **thought Steve "will also marry me if I submit to**
15 **him, and then I can just divorce him. I really**
16 **mostly hate him at this point." Did she ever**
17 **express similar thoughts to you?**

18 A. No.

19 **MR. MOORE:** Objection; lack -- lacks
20 foundation; assumes facts not in evidence.

21 **BY MS. LLAGUNO:**

22 **Q. Do you believe Tara was dating Steve**
23 **Russell for his money?**

24 A. No.

25 **Q. Why did you believe Tara wanted to go to**

1 **San Francisco to be with Steve Russell against your**
2 **wishes?**

3 A. I'm not really sure, quite frankly. I --
4 I -- I -- I was at a loss for why she wanted to go
5 to San Francisco.

6 **Q. Were you speaking with Tara while she was**
7 **in San Francisco after Evie's birth?**

8 A. I -- it -- it -- the connection was lost
9 for a second, so I did not hear the question.

10 **Q. Can you hear me now, Mr. Walsh?**

11 A. Yes.

12 **MS. LLAGUNO:** Monica, can you hear me? Am
13 I cutting out?

14 **THE REPORTER:** No, no. You're -- you're
15 good on my end. Mr. Walsh -- he -- it looks like he
16 paused for a second, so that might be why. But no,
17 you're coming in clear on my end.

18 **MS. LLAGUNO:** Okay.

19 **THE DEPONENT:** Just dropped again. Yeah.
20 It seems to be on my end because --

21 **THE REPORTER:** Would -- would you like to
22 go off the record and address it? Or ...

23 **MS. LLAGUNO:** That's --

24 **THE DEPONENT:** I don't know how. I -- I --
25 - I don't think I have the capability. I'm -- I'm

1 hoping that the connection stays. I'm just checking
2 it.

3 It says my signal is medium, but I -- I'm
4 not in a position to do anything about it right now.

5 **MS. LLAGUNO:** Okay. Well, let me know if
6 you can't hear me or you weren't able to hear the
7 rest of my question. Is that okay, Mr. Walsh?

8 **THE DEPONENT:** Better right now, yes.

9 **BY MS. LLAGUNO:**

10 **Q.** Okay. The question -- going back, I
11 **asked:** Were you speaking with Tara while she was in
12 **San Francisco after Evie's birth?**

13 **A.** Infrequently.

14 **Q.** How often would you say you two spoke?

15 **A.** I -- I -- I really don't know.

16 **Q.** What was your impression of her mental
17 **state at that time?**

18 **A.** I -- I -- I don't -- I -- I -- I can't say
19 that I -- I had --

20 **THE REPORTER:** Sorry, Mr. Walsh.

21 **BY MS. LLAGUNO:**

22 **A.** -- any --

23 **THE REPORTER:** You cut out.

24 **BY MS. LLAGUNO:**

25 **A.** -- impression of her mental state.

1 **THE REPORTER:** Oh, stop.

2 **BY MS. LLAGUNO:**

3 A. I did have --

4 **THE REPORTER:** Mr. Walsh --

5 **BY MS. LLAGUNO:**

6 A. -- an impression of her -- oh.

7 **THE REPORTER:** Mr. Walsh, stop. Can you
8 please start your answer? It -- it cut out.

9 **BY MS. LLAGUNO:**

10 **Q. Could you repeat your response, Mr. Walsh?**

11 A. I -- I had concerns, as I did before she
12 left, about her ability to make decisions as it
13 applied to the baby and -- and -- and living in San
14 Francisco. As I said, I -- I never wanted her to go
15 to San Francisco, nor did her mother. And we were
16 very concerned about the baby being in the
17 environment that the baby was in.

18 So I didn't necessarily judge her mental
19 state or try to determine her mental state. It
20 really had -- it wasn't something that I -- I -- I
21 thought about much.

22 **Q. And Maura Walsh is your wife, correct?**

23 A. Maura Walsh is my wife. Correct.

24 **Q. Were you aware that Tara called Maura and**
25 **asked her and Steve to get her an emergency**

1 **psychiatric evaluation in March of 2018?**

2 A. I don't recall that, no.

3 **Q. Were you aware that Maura and Tara agreed**
4 **that she should have emergency treatment with a**
5 **doctor named Dr. Gopal in San Francisco?**

6 A. I don't recall that, no.

7 **Q. Did you discuss this with Tara or any**
8 **other family members?**

9 A. No. I do remember there was a time when a
10 doctor called. Tara said that, you know, this guy,
11 Dr. Gopal, is basically a paid pawn of Russell, and
12 he's going to try to make decisions; can you talk to
13 the guy? And I actually called Gopal, and he
14 basically shared information about Russell and that
15 -- that is, you know, patient-client privileged.
16 And so I -- I knew right from the get-go that this
17 guy Gopal was not to be trusted and -- and -- and
18 ethically challenged. So that was --

19 **Q. What did --**

20 A. -- my -- my impression.

21 **Q. What did Dr. Gopal share with you**
22 **regarding Steve Russell that made you think that?**

23 A. Gopal told me -- he -- he said that, you
24 know, Steve Russell is -- is a whack job, is
25 essentially what he told me.

1 Q. Your testimony here today is Dr. Gopal on
2 a phone call told you that.

3 A. Yes, that's correct.

4 Q. And did you have any other conversations
5 with Dr. Gopal?

6 A. No. I -- I -- I think it was at one time
7 I was at a swim meet in a car with my -- by myself.
8 I had dropped my daughter off at the swim meet when
9 I called him. And -- and I think it was just that
10 one time. I mean, after talking to him one time, I
11 -- I didn't see any use in speaking to him again
12 because, as I said, he -- he lost his credibility
13 with me.

14 Q. What else did Dr. Gopal tell you about
15 Steve Russell?

16 A. No. I -- I -- not much. It was nothing I
17 recall. It was a conversation a long time ago, and
18 it was a brief conversation.

19 Q. You stated that Dr. Gopal said Steve
20 Russell was a whack job. Do you know -- were those
21 his exact words?

22 A. No, no. It's -- I'm -- I'm paraphrasing.

23 Q. So what was the reason he shared that
24 sentiment with you? Or I'm sorry. Let me rephrase
25 that.

1 **Do you know the basis for his statement?**

2 A. I -- I -- I would just say it was, you
3 know, there were -- there were numerous things that
4 Russell was doing that -- that -- that led him --
5 and -- and -- and I think he was also trying to
6 basically kind of force Gopal to say and do whatever
7 he wanted him to as long as he kept paying him his
8 fees. Russell has a history of using money to get
9 people to do his bidding.

10 And -- and, unfortunately, Joyce (sic), I
11 -- I kind of -- I -- I -- I view you the same way.
12 You are -- you're not doing this case because it's
13 ethically the right thing to do or because your
14 client has a very valid charge and needs to be
15 defended. I believe you're doing this because he's
16 writing checks. And he had no lawyers in -- in San
17 Francisco that would -- he -- he had lawyers, and --
18 and they basically -- I think that they realized
19 they were pushing the ethical line, and -- and --
20 and that is why you in Pennsylvania are representing
21 Russell in a case in California that has nothing to
22 do with people who are in New York because he
23 couldn't find any other lawyers to do it,
24 thankfully.

25 **Q. Okay. And I will turn back to what we had**

1 marked as Exhibit 89.

2 A. Okay.

3 Q. And I want to turn your attention to where
4 Steve Russell, this text message here -- Steve
5 Russell states that Tara Walsh was "sad, angry, and
6 distracted." Did you agree with that?

7 A. As I've stated before, having seen Stephen
8 Russell in the few instances that I did, I did --
9 did not believe that anything he said -- I -- I -- I
10 thought that anything he said could be inaccurate
11 or, you know, deceitful.

12 Q. And in the same text message string, Steve
13 Russell also states in this middle text message that
14 Tara was "begs that I not break up with her." Do
15 you believe that Tara begged Steve not to break up
16 her?

17 A. I -- I have no idea, and I have no reason
18 to believe that.

19 Q. Did Tara Walsh ever communicate with you
20 that she wanted to stay with Steve Russell during
21 her time in San Francisco?

22 A. I really don't recall. I would have
23 suggested that she not if she had asked me.

24 Q. But you don't recall her stating --

25 A. No, I don't. I don't.

1 Q. Do you believe that Tara wanted to stay in
2 a relationship with Steve Russell while she was in
3 San Francisco?

4 A. I -- I have no idea.

5 Q. In the same text message, Steve Russell
6 texted you that Tara was "not acting rationally,
7 sobs for hours." Did you know this to be true?

8 A. I did not, no.

9 Q. Did Tara ever communicate with you about
10 this?

11 A. Not to my recollection.

12 Q. In these text messages, Steve Russell also
13 states that, "Absent you coming to get her, I don't
14 think it's safe for her to fly or be alone with the
15 baby right now." Did you believe that to be true?

16 A. I didn't believe anything he said to be
17 true.

18 Q. Did Tara ever share the same to you?

19 A. There were times -- and -- and I don't
20 have a very full recollection -- where she would
21 just call and -- you know, and say that things were
22 pretty crazy out there. And you know, again, I
23 would say it was a decision you made to go out there
24 that we didn't support, and -- and we emphasized
25 that again and again. And we also emphasized that,

1 you know, if -- if the baby, if she needed to -- to
2 come back, that we would -- you know, we would
3 provide a safe haven and -- and atmosphere for --
4 for the baby. We were very concerned about the
5 baby.

6 **Q. So would it be fair to say you encouraged**
7 **Tara Walsh to return to New York with the baby?**

8 A. I -- I -- no. It -- it wouldn't be fair
9 to say that. Tara is an adult. She made her own
10 decision. She made her own decision to go to San
11 Francisco. And when she returned, for the record,
12 it was her decision. She's an adult. We could not
13 force her to do anything. She -- you know, she
14 knows the type of people we are. She knows the type
15 of family we are. And we would never turn our backs
16 on someone in distress, particularly an infant.

17 **Q. And so did you encourage Tara to return**
18 **with Evie to New York from San Francisco?**

19 A. I -- I -- I did not.

20 **Q. Did you have any concern for Tara's safety**
21 **flying alone with Evie at that time?**

22 A. None whatsoever.

23 **Q. Steve Russell asked you to, quote, support**
24 **me in getting her into a facility or fly out here**
25 **and talk/meet with everyone before deciding to help**

1 her back to New York if that ends up being what's
2 best. Could you read your response to that text
3 message?

4 A. Where is it, exactly?

5 Q. This first column. I can zoom in.

6 A. "I will do my best"?

7 Q. Yes.

8 A. Yeah, okay.

9 Q. Would it -- would it be fair to say that
10 Steve Russell was depending on you to work with him
11 to get the help Tara needed?

12 MR. MOORE: Objection.

13 BY MS. LLAGUNO:

14 A. NO.

15 MR. MOORE: It's argumentative; assumes
16 facts not in evidence; lacks foundation.

17 BY MS. LLAGUNO:

18 A. No.

19 Q. And in this same text message string, this
20 middle column, you texted Steve Russell, "She is
21 cancelling the flight and returning. I will stay in
22 touch." What flight were you returning -- referring
23 to?

24 A. I -- I -- I -- I don't recall. I don't
25 recall.

1 Q. Do you know if Tara was the one telling
2 you that she canceled the flight and is returning?

3 A. Again, I don't recall, but -- but that
4 might have been the case. I'm not saying it wasn't
5 the case.

6 Q. During this time in early June, were you
7 speaking to Tara about leaving?

8 A. I -- I really don't recall. I don't
9 recall.

10 Q. And -- sorry. This same text message, you
11 state that -- you texted Steve Russell, "Hopefully
12 some solutions exist." What did you mean by that?

13 A. I -- I don't know. I don't know. Again,
14 in -- in many of these interactions and -- and
15 correspondences, I would -- I would -- I would humor
16 him because I -- I -- you know, I viewed him as
17 unstable and dangerous.

18 Q. So you -- with your responses, you
19 wouldn't be completely genuine so as to humor him;
20 is that --

21 MR. MOORE: Object -- objection; misstates
22 the testimony; argumentative.

23 BY MS. LLAGUNO:

24 Q. You can respond, Mr. Walsh.

25 A. No response.

1 Q. You do not want to respond to that
2 question?

3 A. That is correct.

4 Q. Can you give me the basis for your --

5 MR. MOORE: Objection. It's --

6 BY MS. LLAGUNO:

7 A. No.

8 MR. MOORE: -- argumentative. And it --
9 you know, and it misstates his testimony. So that's
10 the basis for it.

11 MS. LLAGUNO: Mr. Moore, please do not
12 coach the witness. I'm asking --

13 MR. MOORE: I'm not coaching. I'm
14 instructing him not to answer. He's already decided
15 not to answer. So move on.

16 MS. LLAGUNO: So you are instructing him
17 not to answer that question? I just wanted to
18 clarify.

19 MR. MOORE: He -- he -- I -- well, I will
20 clarify that he himself decided not to answer the
21 question, and -- and for -- there was a good basis
22 for it. When you tried to put words in his mouth
23 that misstate what he testified to, that's a
24 problem. So he's a very competent witness here, and
25 he can make these decisions himself. But I tend to

1 agree with his -- the basis for which he's refusing
2 to answer your argumentative question.

3 **MS. LLAGUNO:** Mr. Moore, he was actually
4 in the middle of responding before you interrupted
5 him --

6 **MR. MOORE:** No, you're wrong. Just move
7 on.

8 **THE DEPONENT:** I --

9 **MS. LLAGUNO:** Again, Mr. Moore --

10 **THE DEPONENT:** -- I am making the decision
11 myself not to respond. It has nothing to do --

12 **MS. LLAGUNO:** Okay.

13 **THE DEPONENT:** -- with Frank.

14 **MS. LLAGUNO:** Got it.

15 Mr. Moore, again, can you let me finish my
16 statement before you interrupt?

17 **BY MS. LLAGUNO:**

18 **Q.** So you do not remember, Mr. Walsh, the
19 solutions you were referring to in this text
20 message?

21 **A.** No.

22 **Q.** Do you remember solutions to what exactly
23 you're referring to?

24 **A.** No.

25 **Q.** And in this same text message string,

1 Steve Russell texted you his belief that, quote, I
2 think the first order of business is simply to fix
3 the difficult living situation and get Tara to agree
4 to allow you to act as her advocate. I am happy to
5 be very flexible in where she lives, nanny, type of
6 care, et cetera, end quote.

7 Could you read your response to this text
8 message?

9 A. "I agree -- let me know how and when I
10 need to be involved."

11 Q. So you agreed you should act as an
12 advocate for Tara; is that correct?

13 A. I agreed that I -- I liked being involved
14 in -- in -- you know, or -- or open --
15 communicating, know -- know about her wellbeing
16 going forward. But again, I did not take anything
17 Russell said as necessarily based in fact or reality
18 because he is not a person that -- that lives in
19 reality. And -- and I'm not -- and I'm not a stupid
20 person, and -- and I'm not easily fooled. So I was
21 never fooled by him into believing that what he said
22 was accurate and sincere.

23 Q. So when you said you were in agreement
24 that you should allow to act as her advocate, would
25 you say you were being genuine in your response to

1 that text message, or were you again humoring him?

2 A. I was not -- I would say I was not
3 entirely genuine. And again, I -- I was trying to
4 defray what -- what I viewed as a caustic situation.

5 Q. So was your understanding of why Steve
6 Russell believed Tara needed an advocate was because
7 Tara was going through mental health episodes?

8 A. No.

9 Q. So what is your understanding of why Steve
10 Russell wanted you to be involved as an advocate for
11 Tara?

12 A. I have no idea.

13 Q. You don't believe Steve Russell wanted
14 your help to help Tara through what she was going
15 through?

16 A. No, no. I wanted -- I -- I -- I think
17 Steve Russell wanted myself and everyone else to
18 believe that he was a sane, competent individual.
19 And -- and I think that was his main objective, to
20 convince me that she was the crazy one and not him.

21 Q. And do you believe Tara to have mental
22 health issues?

23 A. I don't. I -- like I said, I -- I -- I'm
24 -- I -- I -- I have -- I do not believe that, and I
25 could not diagnose her.

1 Q. And you do not know if Tara is seeking
2 mental health treatment for mental health issues; is
3 that --

4 A. No. That's her business. It's her
5 business, not mine.

6 Q. So you do -- you don't know.

7 A. I don't know.

8 Q. And Steve Russell was supportive of Tara
9 going back to New York with Evie for a visit; is
10 that correct?

11 A. Like I said, he -- I don't know if he was
12 or he wasn't. I -- I -- I didn't trust anything he
13 said.

14 Q. So I'm going to scroll down these text
15 messages. Isn't it fair to say that Steve Russell
16 was working with you for a plan to have Tara visit
17 New York temporarily with Evie?

18 A. That's not how I would view it, no.

19 Q. What is your understanding of why Steve
20 Russell wanted -- was supportive of Tara visiting
21 New York with Evie?

22 A. I have no idea. And this is drifting away
23 from the -- from the case at hand and -- and
24 drifting into this other ludicrous case that he's
25 presented about kidnapping, which --

1 **MR. MOORE:** Yeah. I -- I would agree.

2 This is --

3 **THE DEPONENT:** Yeah. And it's --

4 **MR. MOORE:** -- it looks like -- go ahead.

5 Sorry.

6 **THE DEPONENT:** It's -- it's just more
7 delusional nonsense.

8 **MR. MOORE:** And -- and for the record,
9 Stephen Russell has filed a case in pro per alleging
10 a conspiracy by Mr. Walsh, Maura Walsh, with Tara
11 Walsh to abduct Tara Walsh's daughter from San
12 Francisco to New York. He is not represented by his
13 counsel in that case. It was filed relatively --
14 well, at least a couple years after this case was
15 filed. He's split his causes of action, which is
16 impermissible in California. And --

17 **MS. LLAGUNO:** Mr. --

18 **MR. MOORE:** -- and -- and -- and I will
19 add that he has misrepresented his address on the
20 pleading on the case.

21 Mr. Russell has filed a motion to quash.
22 I served it to the address that is on Mr. Russell's
23 pleading. It was returned as nondeliverable. If
24 you research that on Google, the address he gave is
25 of some business, certainly not one that's related

1 to him. He seems to be misrepresenting his address
2 to the court. It's very unbecoming.

3 And it looks like you are trying to get
4 discovery in that case, which is improper because
5 there has been no answer in that case and discovery
6 had not begun in that case. And it's improper to
7 use another case to try to get discovery in a case
8 that's not at issue.

9 **MS. LLAGUNO:** Mr. Moore, you are allowed
10 to make your objections at deposition. But I please
11 --

12 **MR. MOORE:** And I just did. So you don't
13 need to argue with me about it.

14 **THE REPORTER:** Counsel, again, I
15 understand you are attempting to do this. But
16 please speak one at a time, or your record will not
17 be clear.

18 So please -- please restate your
19 statement, Ms. Llaguno. My apologies.

20 **MS. LLAGUNO:** Thank you, Monica.

21 Mr. Moore, again, while I am speaking, I
22 give you the chance to do your improper speaking
23 objections and do not interrupt you. Please stop
24 interrupting me, and let me finish my statement. I
25 allowed you to make your objection, albeit improper.

1 I'd like to ask you again to refrain from
2 these longwinded speaking objections. You're
3 allowed to make very succinct objections to my
4 questions, but you cannot take up my deposition time
5 to make these long, improper speaking objections,
6 going in about the procedural history of another
7 case that's not in front of us here.

8 **MR. MOORE:** I am going to make my record,
9 and I will do it as -- on your dime as long as I
10 want. You are improperly using and abusing the
11 court system, and the record will reflect that that
12 is such the case. It will be potentially before a
13 court, and that is why I'm making my record.

14 Thank you.

15 **MS. LLAGUNO:** You can make your record
16 with a succinct objection and not --

17 **MR. MOORE:** No. I have to explain your
18 improper conduct.

19 **MS. LLAGUNO:** Mr. Moore, again, you're
20 interrupting me.

21 **MR. MOORE:** Why do you insist on arguing
22 with me? And just get to the task at hand, and
23 finish this deposition.

24 **MS. LLAGUNO:** The court has noted four or
25 five times now that you are the one interrupting me.

1 I have not once interrupted you in the middle of one
2 of your statements. So I want to make that clear.

3 **MR. MOORE:** There's no court in session,
4 so I don't know what you're talking about. But just
5 move on.

6 **BY MS. LLAGUNO:**

7 **Q. And Mr. Walsh, I am going to direct your**
8 **attention to this last text message in Exhibit 89.**
9 **Could you read what you texted Steve Russell?**

10 A. Hold on a second. I seem to have messed
11 something up here.

12 "Steve -- I'm very happy to hear she'll be
13 coming to visit -- we are all very excited about
14 seeing Evie -- all set up at our house to
15 accommodate." Is that what you're referring to?

16 **Q. Yes.**

17 A. All right.

18 **Q. So you confirmed with Steve Russell that**
19 **Tara and Evie would be going to New York for a visit**
20 **only, but would return with Evie to San Francisco;**
21 **is that accurate?**

22 A. No, that's not accurate. And again, if
23 Tara was coming to New York to see us, that would be
24 her decision. It would have nothing to do with us
25 deciding if she was going to come to New York.

1 Q. Okay. And you mentioned earlier, Mr.
2 Walsh, that Steve Russell had security personnel and
3 that there -- so what -- there were times when Steve
4 Russell was in New York with security guards; is
5 that correct?

6 A. Oh, yeah.

7 Q. Do you have an understanding of why he had
8 guards?

9 A. My understanding -- you want my personal
10 take?

11 Q. Yes.

12 A. Is that what you're asking for -- was that
13 he was delusional.

14 Q. Do you know one way or another whether
15 Russia or Ukraine was after him?

16 A. No. No. I -- I -- I -- I do not.

17 Q. So you don't know whether security was
18 necessary; is that correct?

19 A. I -- I -- I guess I don't know. But I
20 mean, I -- I think a reasonable person would have
21 assumed that it was delusion that was the primary
22 motivator.

23 Q. So I'm going to show you now what we're
24 going to mark as Exhibit 90.

25 THE REPORTER: It will be marked as

1 Exhibit 90.

2 (WHEREUPON, Exhibit 90 was marked for
3 identification.)

4 BY MS. LLAGUNO:

5 Q. Can you see this document, Mr. Walsh?

6 A. Yes.

7 Q. Do you recognize this document?

8 A. Yes.

9 Q. And this document is an email from
10 sw052382 to Audrey Courson. Is this an email from
11 you, Mr. Walsh?

12 A. Yes. And Audrey, can you -- I can't
13 remember who Audrey is. Is she an attorney in San
14 Francisco?

15 Q. Well, do -- you don't have a recollection
16 of who Audrey Courson is?

17 A. I don't, no. I -- I believe she was a
18 counsel in San Francisco, but I'm not 100 percent
19 sure.

20 Q. Do you recall if Audrey Courson was Tara's
21 attorney?

22 A. I don't. I don't. I -- I think so, but I
23 -- I don't. I'm telling you I don't. So ...

24 Q. Okay. And why did you write this to
25 Audrey Courson?

1 A. I don't recall why I wrote it. It sounds
2 to me like I wrote it, just from reading it, that I
3 was explaining to this person that the baby being
4 around Steve Russell was dangerous. It looks --
5 that's what -- yeah. I mean, I -- I think it's
6 pretty obvious. You -- you tell me what you think I
7 was saying.

8 **Q. Do you recall if you submitted this**
9 **statement in court?**

10 A. I -- I don't recall that, no. But I -- I
11 don't know if it was submitted to a court. Like I
12 said, I -- I think Audrey was the counsel in San
13 Francisco. You seem to know that, but you're not
14 willing to share that with me.

15 **Q. I just -- I don't want to impede on your**
16 **testimony, your own recollection, Mr. Walsh.**

17 **My -- this email, you wrote -- could you**
18 **read me here where it says, "She's seeing doctors"?**

19 A. Yeah.

20 **Q. Could you read the statement you wrote out**
21 **loud, please, Mr. Walsh?**

22 A. Currently, Tara has the support of her
23 family and is doing fine. She's seeing doctors and
24 maintaining a happy lifestyle -- a healthy
25 lifestyle. Evie is surrounded by an extended family

1 and getting the best care possible. She is a happy
2 and flourishing child. I am strongly convinced that
3 her current situation is -- is the possible
4 solution. It seems like I ...

5 **Q. So you wrote that quote, "She's seeing**
6 **doctors and maintaining a healthy lifestyle;" is**
7 **that correct?**

8 A. Yeah. Yeah. I -- I did write that.
9 Absolutely.

10 **Q. And you were referring to psychiatrists;**
11 **is that correct?**

12 A. I'm not sure I was. I'm not sure I was.

13 **Q. What doctors were you referring to?**

14 A. I'm really -- I -- I am not sure. I'm not
15 sure. I think it was, you know, that she -- you
16 know, she had -- she had come from a pretty
17 traumatic situation in San Francisco. So she did
18 need, you know, counseling and/or intervention that,
19 you know -- from -- from professionals. I mean, it
20 did -- the situation, as I said, in San Francisco
21 was -- it was -- you know, it -- it -- not unlike
22 someone returning from -- from a war zone where she
23 was traumatized.

24 **Q. So --**

25 A. But I don't know the specific doctors I

1 was referring to.

2 **Q. So you do believe around this time in July**
3 **of 2018 that Tara was seeking mental health**
4 **treatment; is that correct?**

5 A. Yeah. I -- I -- I -- I guess it's
6 correct. But yeah, I mean, again, I'm not -- I'm --
7 I'm not fully recollecting exactly what that would
8 be or who it was with.

9 **Q. Do you know if Tara was seeking --**

10 A. Certainly -- certainly didn't imply that
11 she needed to be institutionalized, or anything like
12 that.

13 **Q. Do you know if Tara was seeking for her --**
14 **her borderline personality disorder?**

15 A. That -- that's kind of a silly question
16 because I don't know if she -- I don't know that she
17 was ever diagnosed with borderline personality
18 deficit, or whatever you call it.

19 **Q. Okay. And so in this email, you also**
20 **write, quote, the entire time Steve was in New York.**
21 **Could you read this one sentence, Mr. Walsh?**

22 A. He was accompanied by security personnel,
23 who -- all who agreed discretely that they were only
24 humoring his fantasies.

25 **Q. And you wrote that, correct?**

1 A. I did, yes.

2 Q. Did you speak with Steve Russell's
3 security personnel?

4 A. I did, yes.

5 Q. What were the names of the guards?

6 A. I don't remember, and -- and I wouldn't --
7 I wouldn't -- if I did, I wouldn't give you the
8 names. And -- and, you know, of anything they told
9 me in confidence I -- I wouldn't share with you.

10 Q. What specifically did they tell you?

11 A. In -- in so many words, that Steve Russell
12 was batshit crazy. Excuse my language.

13 Q. And when did the security guards tell this
14 to you?

15 A. I don't know exact time.

16 Q. Was it in response to a question from you?

17 A. No. No.

18 Q. They just voluntarily told you?

19 A. Oh, yeah. Yeah. I mean, they were --
20 they were trying to exclaim why they were there and
21 what they were doing. And none of them had any --
22 in -- in fact, I believe that, you know, he would
23 fire these guys routinely. And I also believe that,
24 you know, there were some that were, like other
25 professionals in his life, were just taking his

1 money.

2 Q. Did they ever -- I'm sorry. Let me
3 rephrase.

4 Did the security guards ever explain to
5 you that they reported to Steve Russell that there
6 were listening devices in the walls?

7 A. They said that he was -- believed that
8 there were listening devices in the walls and
9 mirrors and even, like, overhead radar and, you
10 know, all -- all -- all kinds of technology that
11 paranoid people generally think that are -- are
12 being used against them -- listening devices, bugs,
13 hidden cameras, taped phone calls, whatever, you
14 know. I think it was the -- the full gamut of
15 conspiracy.

16 Q. So a secure -- sorry. Let me rephrase
17 that.

18 So Steve -- so was there ever a security
19 guard of Steve Russell that told you that they were
20 the ones who informed him that they believed there
21 were listening devices in his walls?

22 A. No. That never happened.

23 Q. Did any of the security guards inform you
24 that they reported to Steve Russell that they had,
25 indeed, found a listening device in Steve Russell's

1 **walls?**

2 A. Absolutely not.

3 **Q. If they had reported that to you, would**
4 **that change your understanding of the situation?**

5 **MR. MOORE:** Incomplete hypothetical;
6 misstates the record; lacks foundation.

7 **BY MS. LLAGUNO:**

8 **Q. You can respond, Mr. Walsh.**

9 A. I agree with Frank.

10 **Q. I don't believe -- Frank can state his**
11 **objections. But unless he directs you not to**
12 **respond, you're able to respond.**

13 **MR. MOORE:** I -- I will also state for the
14 record that -- that Mr. Russell has ongoing
15 litigation against his security people that he hired
16 of which Ms. Llaguno has just recently substituted
17 in as counsel for him in that case --

18 **THE DEPONENT:** Yeah.

19 **MR. MOORE:** -- in federal court in the
20 Northern District. And she is attempting to seek
21 discovery in that case impermissibly on a case
22 that's very narrow in this case, which is a San
23 Francisco Superior Court case, involving alleged
24 dosing of Seroquel.

25 **MS. LLAGUNO:** And Mr. Moore, please

1 succinctly state your objection and refrain --

2 **MR. MOORE:** I just did. Thank you.

3 **MS. LLAGUNO:** -- proper objection. Again,
4 please let me finish my statement before
5 interrupting me. Just please uphold the rules of
6 civility at this deposition.

7 Because the court reporter did not get my
8 last statement due to your interruption, I'd like to
9 remind you again to refrain from improper speaking
10 objections. Please --

11 **MR. MOORE:** Stop arguing.

12 **MS. LLAGUNO:** Mr. Moore, please keep your
13 objections succinct, and refrain from improper
14 coaching and speaking objections.

15 Thank you.

16 **MR. MOORE:** Stop arguing.

17 **MS. LLAGUNO:** Would you like to say that
18 one more time?

19 **MR. MOORE:** Stop arguing.

20 **THE REPORTER:** And counsel, when we are at
21 a good stopping point, could we go off the record?
22 We've been going for an hour and 40 minutes on the
23 record.

24 **MS. LLAGUNO:** Okay. We can take a break.
25 Let me - yeah, we can. That's fine. We can take a

1 break right now.

2 **THE REPORTER:** Okay --

3 **THE VIDEOGRAPHER:** Okay. The time is 1:39
4 p.m., and we are off the record.

5 **(WHEREUPON, a recess was taken.)**

6 **THE VIDEOGRAPHER:** The time is 1:53 p.m.,
7 and we are on the record.

8 **BY MS. LLAGUNO:**

9 **Q. Mr. Walsh, I'm going to have the court**
10 **reporter repeat the last question that was asked.**

11 **THE REPORTER:** And the last question that
12 was asked was, "If they had reported that to you,
13 would that change your understanding of the
14 situation?"

15 **BY MS. LLAGUNO:**

16 **A.** Not necessarily, no.

17 **Q. Why not, Mr. Walsh?**

18 **A.** Because you know, anyone that is pretty
19 much in the employ of Mr. Russell generally cannot
20 be trusted because information one way or the other,
21 in -- in many cases, he's just paying them to -- to
22 say things, so hence not necessarily.

23 **Q. And do you have personal knowledge --**

24 **A.** I don't.

25 **Q. -- of --**

1 A. I don't. Has he joined us on the call, by
2 the way, Joy?

3 **Q. No. No, Mr. Walsh, he has not.**

4 A. Okay. And you -- you stated that you will
5 let us all know if he does.

6 **Q. Yes, I will. I believe we'll be able to**
7 **see if he joins as well.**

8 A. Okay.

9 **MR. MOORE:** Well, the problem is last time
10 we weren't because he appeared by a phone. And
11 unless he spoke, his name didn't pop up. It
12 appeared under the Naegeli screen. And so it was
13 very, very odd that that happened at Matan's
14 deposition. So we would request that if he does
15 join in by phone again, that his actual face appear
16 on the screen and not just lurking in the background
17 like he did at Matan's deposition.

18 **BY MS. LLAGUNO:**

19 **Q. Going back to our questions, Mr. Walsh,**
20 **I'm going to reshare what we were looking at prior -**
21 **- before the break, which we've marked as Exhibit**
22 **90. So after you spoke with Mr. Russell's security**
23 **guards while they were in New York, did you ever**
24 **have any communications with them after that?**

25 A. I -- I don't think I -- I -- I -- I don't

1 recall specifically, but I don't believe I did.

2 Q. Did you ever have any communications with
3 Steve Russell's security personnel in -- while they
4 -- in San Francisco?

5 A. No.

6 Q. We know that Tara and some of the guards
7 were in communication by text message. Do you know
8 who?

9 A. I have no idea.

10 Q. Do you know why Tara Walsh kept in
11 communication with some of the guards through text
12 message?

13 A. I have no idea.

14 Q. How did Tara feel about the security
15 guards?

16 A. I'm not really sure. But I -- I -- I
17 believe she felt it was creepy.

18 Q. And did Tara express this to you?

19 A. In -- in -- in -- I guess she kind of did,
20 yeah. I mean, she would just say that, you know,
21 having them around 100 percent of the time was very
22 odd and very disconcerting.

23 Q. What else would Tara express to you about
24 her -- the security guards?

25 A. Nothing that I recall.

1 Q. And in this email you sent to Audrey
2 Courson, you mention that the security guards "were
3 only humoring his fantasies." What were the
4 fantasies the guards were referring to?

5 A. I think we've discussed that -- that he
6 was being followed and spied upon by Ukrainian and
7 other unnamed or imagined sources.

8 Q. And there was a time Steve Russell fired
9 the guards; is that correct?

10 A. I have no idea. I believe so. I think it
11 -- I think he told me, or maybe Tara told me, or
12 someone told me or -- that. I -- I think he was
13 firing guards and replacing them all the time.

14 Q. And do you have any recollection of the
15 guards not showing up anymore?

16 A. Not really, no. It's not like I had
17 personal relationships with any of them.

18 Q. Did anyone in your family keep in touch
19 with the guards?

20 A. I strongly doubt it; not to my knowledge.

21 Q. One of the -- I'm sorry. Scratch that.

22 One of Steve Russell's security guards
23 offered to help Tara with her custody case; is that
24 right?

25 A. I have no idea.

1 Q. So you have no knowledge of one of the
2 security guards offering to testify about Steve.

3 A. No.

4 Q. And you have no knowledge that they
5 offered to testify about the fantasies that you
6 mentioned in your email.

7 A. I really don't recall, no.

8 Q. And do you know if -- I'm sorry. Scratch
9 that.

10 Do you know if Tara was really grateful
11 for the guards offering to offer testimony in her
12 custody case?

13 A. I have no -- I have no idea.

14 Q. And Tara talked to you about Steve Russell
15 not paying the guards; is that correct?

16 A. I don't recall that, no.

17 Q. Did that subject ever come up?

18 A. Not that I recall, no. It wasn't
19 something I really cared about.

20 Q. So you have no recollection of Tara
21 wanting to help -- I'm sorry. Let me rephrase that.

22 So you don't recall Tara wanting to help
23 the security guards get paid by Steve Russell.

24 A. No, I don't.

25 Q. And you wouldn't know how many times Tara

1 met with the guards after Steve Russell had fired
2 them.

3 A. No. I wouldn't know that. No.

4 Q. And you don't have any knowledge of Tara
5 texting the security guards regularly; is that
6 correct?

7 A. I don't have any knowledge, no.

8 Q. And do you have any knowledge of a quid
9 pro quo arrangement between Tara and Steve Russell's
10 security guards?

11 A. No. I have no knowledge of that.

12 Q. You have no knowledge of the quid pro quo
13 where they would offer to -- offer testimony in her
14 custody case and help her in her case against Steve
15 Russell and Tara Walsh would help get them paid.

16 A. I have no knowledge of that, no.

17 Q. Do you have any knowledge if she, in fact,
18 helped them get paid?

19 A. I have no idea.

20 Q. Do you have any knowledge of Steve
21 Russell's security guards helping her in any of her
22 court cases?

23 A. No.

24 Q. Do you know if Tara is still in touch with
25 Steve Russell's security personnel?

1 A. I have no idea.

2 Q. Brienne Walsh, your daughter, at her
3 deposition testified that you became friendly with
4 one of the security guards that was in the delivery
5 room with the family. Do you remember him?

6 A. I remember the two security guards that
7 were there, and the one guy was a former New York
8 City policeman. And he knew people that I knew.
9 But you know, we -- we had friendly conversations,
10 but we did not become friends.

11 Q. Do you remember --

12 A. And I did not stay in touch with him or --
13 I -- I don't know much about him at all other than
14 that he was NYPD.

15 Q. And to clarify, you said you -- you did
16 not keep in touch with him, correct?

17 A. I absolutely did not keep in touch with
18 him. That is correct.

19 Q. What was his name?

20 A. I don't know. I don't remember.

21 Q. And so that time in the delivery room was
22 the only -- I'm sorry. Scratch that.

23 Oh, yeah. That time in the delivery room
24 was the only time you spoke with that guard; is that
25 accurate?

1 A. I think so. Maybe -- maybe in -- in the
2 apartment in Brooklyn because they would, you know --
3 -- the -- they were still working at that point. So
4 I don't -- I -- I don't recall specifically, but I
5 may have talked to him when he was in Brooklyn as
6 well.

7 Q. Do you remember how many times around you
8 -- you've spoken with a security guard?

9 A. No.

10 Q. So other than at the hospital and the
11 apartment in Brooklyn, you have not spoken to him
12 other than those times; is that correct?

13 A. That's correct.

14 Q. What do you remember about what you two
15 discussed?

16 A. Like I said, we discussed -- I discussed
17 things about, you know, things in general. I -- I
18 like to talk to people, and -- and I -- I engage in
19 conversations with complete strangers at times. And
20 we -- we -- it -- it was more general things. But
21 you know, when -- when -- when -- you know, I -- I'm
22 -- I'm not going to -- I'm not going to disclose
23 things that I spoke to this gentleman about, in
24 fairness to him. So ...

25 Q. Do you recall that you both talked about

1 **being from the Bronx?**

2 A. Yes.

3 **Q. Do you recall --**

4 A. That would make him -- that would make him
5 just one of thousands of people I've had that
6 conversation with.

7 **Q. Do you recall also talking about baseball**
8 **with him?**

9 A. No, not really, but that's possible. You
10 talk about the Bronx, you talk about the Yankees.
11 So it's highly possible.

12 **Q. And other than what you stated previously,**
13 **what else did you talk about regarding Steve**
14 **Russell?**

15 A. I have no idea. I -- I -- I really don't
16 remember.

17 **Q. Did you ever talk to the security guard**
18 **about the threats against Steve Russell?**

19 A. I believe I did. I believe I did. And --
20 and -- and I believe that their opinion was that it
21 was delusion.

22 **Q. Other than this one security guard you**
23 **spoke to at the hospital, did any of the other**
24 **security guards express the same thing?**

25 A. Again, I -- I think I need to protect

1 these guys. So I -- I'm not going to answer those
2 questions because I'm sure Russell will sue them
3 next. So I -- I'm not going to answer those
4 questions.

5 **MR. MOORE:** He's already sued them, and
6 that's why she's asking --

7 **THE DEPONENT:** Yeah, okay.

8 **MR. MOORE:** -- seeking discovery in -- for
9 another case --

10 **THE DEPONENT:** Yeah --

11 **MR. MOORE:** -- on -- on your --

12 **MS. LLAGUNO:** Mr. Moore --

13 **MR. MOORE:** -- not -- not -- not --

14 **MS. LLAGUNO:** -- please stop --

15 **MR. MOORE:** -- subpoenaing you in -- in
16 that case because, you know, it's in a different
17 court. She's using this opportunity to find
18 discoverable information for yet another case that
19 Stephen Russell has brought up. It's highly
20 improper behavior.

21 **BY MS. LLAGUNO:**

22 **Q.** And Mr. Walsh, did -- did you -- did you
23 talk about Steve's mental health with a security
24 guard?

25 **A.** No. I -- I -- I -- again, I'm not going

1 to answer questions about these guys because these
2 guys have also, I believe, have to have, you know,
3 ethical standards where they're not allowed to talk
4 about things. So you know, I talked about the Bronx
5 and baseball, yeah. And -- and that's all I'll tell
6 you that I talked about.

7 **Q. You've spoken with Tara about the security**
8 **personnel Steve hired, correct?**

9 A. Not specifically. I -- I'm not sure what
10 you're referring to.

11 **Q. Tara told various people she thought they**
12 **were taking advantage of Steve; did she tell you**
13 **this?**

14 A. Okay. As I've said, Joy -- and -- and
15 I'll say it again -- I think everyone that Russell
16 employs, including yourself, takes advantage of him
17 and takes his money while knowing that he's a person
18 with severe mental disabilities. So do I think that
19 the security guards took advantage of him without
20 knowing specifically? I'd say that's highly
21 possible -- not necessarily the two that you
22 referenced, but some others. You know, I think that
23 people generally take the guy's money because he's
24 got a lot of it and he -- he gets, you know -- he's
25 good financially for a lot of people, again,

1 including yourself. I -- that's the way I feel.

2 **Q. And you've testified previously that you**
3 **do not have any type of medical licensing to be able**
4 **to diagnose someone with a mental disability; is**
5 **that correct?**

6 A. Like I said, to -- to -- to diagnose
7 someone -- I -- I'm not giving a specific diagnosis.
8 But I don't need a medical degree to -- to -- when --
9 -- when you witness that level of insanity. And --

10 **MR. MOORE:** And -- and -- go ahead.
11 Finish your -- finish your response.

12 **BY MS. LLAGUNO:**

13 A. You don't -- you don't need a medical
14 degree.

15 **MR. MOORE:** Yeah. And -- and by the way,
16 counsel, you've been asking him about his opinion on
17 numerous subjects in this case during this
18 deposition. And you know, as you know, lay opinion
19 is a proper basis for a witness to give. He doesn't
20 have to have expert training in order to give a lay
21 opinion. So you -- you -- you can't have it both
22 ways. If you're going to ask him his opinion on
23 things, he's entitled to give it. He's a layperson
24 with an ability to give a lay opinion that's
25 admissible under the Rules of Evidence in

1 California.

2 **MS. LLAGUNO:** And again, Mr. Moore, I
3 allowed Mr. Walsh to testify as he pleased. I don't
4 need your elongated speaking objections on the
5 matter.

6 **MR. MOORE:** I'm making a record.

7 **BY MS. LLAGUNO:**

8 **Q. Mr. Walsh, you've spoken with Tara about**
9 **the security personnel Steve hired, correct?**

10 A. I -- I -- I think I already answered that.
11 I said that, you know, I -- not specifically. I'm
12 not sure what you're referencing. But ...

13 **Q. What -- what else has Tara told you about**
14 **Steve Russell's security personnel?**

15 A. She hasn't told me much about her security
16 -- his security personnel. I told you about my own
17 individual experience with his security personnel.
18 But I -- I -- I did not have -- you know, other than
19 that they were omnipresent and, you know, around all
20 the time, I don't know them individually other than
21 those two gentlemen that I met at the hospital, who
22 I won't discuss further.

23 **Q. And Brienne at her deposition also**
24 **testified that you and she both believed there were**
25 **no actual threats against Steve; is that true?**

1 A. I have no idea what Brienne believed. And
2 -- and so ...

3 Q. But you personally do not believe there
4 were any actual threats against Steve Russell; is
5 that correct?

6 A. I -- I -- I highly doubted that there
7 were.

8 Q. For example, you believe there were no
9 Russian spies tailing Steve Russell, correct?

10 A. I did not believe that there were, no.

11 Q. Did you believe there were any other
12 threats to Steve Russell's safety?

13 A. I -- I didn't give it much thought.

14 Q. Are you familiar with Neer Naman?

15 A. No.

16 Q. Are you familiar with George Akkelquist?

17 A. Nope.

18 Q. Are you familiar with Ryan Micheletti?

19 A. No. There was on security guy he brought
20 with him to New York that I met briefly in the -- in
21 the White Plains courthouse. But I -- I don't know
22 the guy's name, or I don't remember much about him
23 at all.

24 Q. Could you describe what he looked like?

25 A. I can't, no. Caucasian, male Caucasian.

1 Q. Are you familiar with Albert Timen?

2 A. Nope.

3 Q. Are you familiar with Raven Shlomo?

4 A. Nope.

5 Q. Are you familiar with Joe Prendergust?

6 A. No.

7 Q. You don't recall who he is?

8 A. No.

9 Q. Do you recall ever meeting a Joe
10 Prendergust?

11 A. No. I mean, it -- the name is not a
12 familiar name to me.

13 Q. Has Tara ever talked to you about Mr.
14 Russell being "conned" by his security team?

15 A. I don't know if she's ever mentioned that
16 to me, no. I think I drew that conclusion myself.

17 Q. So you've never discussed with Tara about
18 Steve Russell being conned by his security team.

19 A. No, not specifically. And -- and if it --
20 if we did discuss it -- and -- and I'm trying to
21 recall -- it would have been empathetically whereas
22 she was concerned that they were taking advantage of
23 him. But I -- I don't remember specifics, no.

24 Q. We discussed earlier about Steve
25 supporting Tara's decision to go back to New York

1 with Evie for a visit. And in June of 2018, Tara
2 had spoken with you about moving back, correct?

3 A. No.

4 MR. MOORE: Misstates the record.

5 BY MS. LLAGUNO:

6 Q. Did you help Tara with her move back to
7 New York from San Francisco?

8 A. No.

9 Q. Were you aware there was a restraining
10 order preventing either her or Steve Russell from
11 removing Evie from the State of California without
12 each other's written consent?

13 A. No.

14 MR. MOORE: Assumes facts not in evidence

15 --

16 BY MS. LLAGUNO:

17 A. Yeah, that --

18 MR. MOORE: -- lacks foundation.

19 BY MS. LLAGUNO:

20 A. -- has nothing to do with anything we --

21 THE REPORTER: Mr. Walsh, can you please
22 repeat your answer.

23 And I'd just like to stipulate for the
24 record if you continue to talk over each other, the
25 reflect will reflect as such, and it will not be

1 clear.

2 Please repeat your answer, Mr. Walsh.

3 **BY MS. LLAGUNO:**

4 A. No. My answer is no.

5 **Q. And Steve Russell believed that Tara was**
6 **only visiting New York for a vocation; is that --**

7 **MR. MOORE:** That's not a question. That's
8 not a question. That's not a question.

9 **BY MS. LLAGUNO:**

10 A. I -- I -- I can answer it again. And I'll
11 say Tara is an adult. Any decision she makes about
12 where she lives is her decision and her decision
13 alone. I did not, you know, throw a net around
14 Tara, put her over my shoulder, and throw her in the
15 trunk and drive her to my house and tell her she
16 couldn't leave or I would harm her. I didn't do
17 that, no.

18 She's an adult. She made a decision to
19 come to New York. I didn't know what her plans
20 were. I certainly didn't think that she was coming
21 back to stay in our house permanently. Things
22 evolved as they did, and -- and it had very little
23 or nothing to do with me or my wife.

24 **Q. But based on your own understanding, Steve**
25 **Russell believed that Tara was only visiting for a**

1 **vacation.**

2 A. I -- I don't know what Steve Russell
3 believed. And as I've stated numerous times in
4 here, anything Steve -- Steve Russell believed was,
5 from my perspective, something that I didn't
6 necessarily want to believe.

7 **Q. And that includes Steve Russell's belief**
8 **that Tara would return with Evie to San Francisco?**

9 A. I don't -- I don't know what that has to
10 do with anything. I don't know. You tell me. What
11 was his belief?

12 **Q. In -- would you like to respond to my**
13 **question?**

14 **MR. MOORE:** No. I -- I think he's -- he's
15 a better lawyer than I am. That's an extremely good
16 answer.

17 **BY MS. LLAGUNO:**

18 **Q. And just to clarify, Mr. Walsh, you are**
19 **refusing to respond to the last question?**

20 **MR. MOORE:** No. He did --

21 **THE DEPONENT:** I -- I --

22 **MR. MOORE:** -- respond.

23 **BY MS. LLAGUNO:**

24 A. Yeah, no. I did respond. I said I had no
25 idea what he believed.

1 **MR. MOORE:** Calls for speculation,
2 belatedly, was the objection. But that's exactly
3 right. He can't get into Steve Russell's head.
4 Neither can you unless he told you something.

5 **BY MS. LLAGUNO:**

6 **Q.** So why did you allow Steve Russell to
7 believe that Tara was only going on vacation?

8 **MR. MOORE:** Assumes facts not in evidence;
9 lacks foundation --

10 **THE DEPONENT:** I never --

11 **MR. MOORE:** -- argumentative. This is
12 really getting way off base because it's -- it's
13 silly now. You're -- you're just making up stuff.

14 **BY MS. LLAGUNO:**

15 **Q.** Mr. Walsh, I believe you were responding
16 before Mr. Moore's speaking objection.

17 **A.** I have no idea what Steve -- what goes
18 through Steve Russell's mind. I -- I -- I -- I
19 didn't make any statements promising him.

20 And -- and as I said, we're -- we're going
21 around in circles here. Tara makes her own
22 decisions, you know. She's an adult. I believe
23 Tara is 36 years old, okay? She's not a kid that,
24 you know, I tell her if you don't eat your
25 vegetables, you're going to bed without dessert. So

1 I -- I don't -- I don't know what you're getting at.

2 **Q. Weren't you in contact with Steve Russell**
3 **preparing for Tara's visit?**

4 A. No.

5 **Q. You were not in contact with Mr. Russell**
6 **preparing for Tara's visit?**

7 **MR. MOORE:** Asked and answered --

8 **BY MS. LLAGUNO:**

9 A. I never -- I never believed that Steve
10 Russell had the right to say whether Tara could
11 visit or not. I mean, who -- who would think that
12 that was the case, that another person, an adult,
13 was making the decision whether or not she could
14 come to New York. I couldn't make that decision.
15 Steve Russell couldn't make that decision. The only
16 one that could make that decision was Tara because
17 she is an independent adult.

18 **Q. But you did, in fact, testify that you**
19 **were not aware there was a restraining order**
20 **prohibiting Tara from leaving the State of --**

21 A. I --

22 **Q. -- California --**

23 A. -- testify that. Yes, I did.

24 **MR. MOORE:** Assumes facts not in evidence

25 --

1 **THE DEPONENT:** Yeah. So --

2 **MR. MOORE:** -- argumentative.

3 **THE REPORTER:** Stop. Please repeat the
4 question, answer, and objection.

5 **BY MS. LLAGUNO:**

6 **Q.** I believe my question was: Mr. -- Mr.
7 Walsh, I believe you testified previously that you
8 were not aware there was a California court order
9 restraining Tara from leaving the State of
10 California with Evie; is that --

11 **MR. MOORE:** Object --

12 **BY MS. LLAGUNO:**

13 **A.** I didn't state that. So what -- why are
14 we asking it again?

15 **MR. MOORE:** Assumes facts not in evidence
16 is my objection.

17 **THE REPORTER:** I -- I note your objection.
18 Please repeat your answer, Mr. Walsh. It
19 keeps getting cut off.

20 **BY MS. LLAGUNO:**

21 **A.** Oh, I'll -- I'll -- I guess I'll repeat it
22 for the third time or fourth time. I had no idea
23 that there was any restraining order. And again, it
24 wouldn't have mattered because it was Tara's
25 decision to leave, not mine.

1 Q. You agreed with Steve Russell, however,
2 that you would pick Tara up from the airport; didn't
3 you?

4 MR. MOORE: Objection --

5 BY MS. LLAGUNO:

6 A. I agreed with --

7 MR. MOORE: -- argumentative.

8 BY MS. LLAGUNO:

9 A. -- I agreed with Tara that I would pick
10 her up at the airport.

11 Q. And you don't recall stating that to Steve
12 Russell?

13 A. I don't recall stating that to Steve
14 Russell. And I don't see why I would need to state
15 that to Steve Russell because, as I've said again
16 and again, Tara is an adult who makes those
17 decisions for herself.

18 Q. At the time --

19 A. If Steve Russell told me -- called me up
20 and said, you know, make sure you give Tara broccoli
21 and -- and -- and pasta for dinner, I wouldn't say,
22 oh, yeah, Steve Russell told me to feed you this and
23 you're going to eat it. It's -- it's absurd. It's
24 ludicrous.

25 Q. At the time Tara was going to New York for

1 a visit, did you believe she was going to return to
2 San Francisco?

3 A. I -- I had no idea.

4 Q. But you didn't want her to -- to go back
5 to San Francisco; is that right?

6 A. I believe I --

7 MR. MOORE: Objection.

8 BY MS. LLAGUNO:

9 A. -- stated that earlier. I never -- I
10 never wanted her to go to San Francisco. I thought
11 that the environment for the baby in San Francisco
12 was pure lunacy. And -- and no. So at that time,
13 she was coming this way. I didn't know whether
14 she'd go back. But again, it was her decision.

15 Q. And yet you lied to make Steve Russell
16 believe that you were encouraging her to return to
17 San Francisco; didn't you?

18 A. That --

19 MR. MOORE: Objection; argumentative.

20 You don't have to answer that question.
21 She's just arguing with you --

22 BY MS. LLAGUNO:

23 A. I didn't lie about anything.

24 Q. I'm going to show you now what we're going
25 to mark as Exhibit 91.

1 **THE REPORTER:** Marked as Exhibit 91.

2 **(WHEREUPON, Exhibit 91 was marked for**
3 **identification.)**

4 **BY MS. LLAGUNO:**

5 **Q.** Do you recognize this document, Mr. Walsh?

6 A. No.

7 **Q.** And let me scroll down. I'll show you the
8 **second page. Does this refresh your recollection?**

9 A. No.

10 **Q.** And this third page, you don't recognize
11 **it either?**

12 A. No.

13 **Q.** And so you stated your email address is
14 **sw052382@gmail.com; is that correct?**

15 A. Yes. It -- it -- it's obvious this was
16 sent to my email. Yes. So what are your questions?

17 **Q.** Is this an email between you and Steve
18 **Russell?**

19 A. It appears to be, yes.

20 **Q.** And what is the date of this email
21 **correspondence?**

22 A. What does this have to do with Tara
23 drugging Steve Russell in San Francisco about the
24 alleged case? This is more to do with this idiotic
25 kidnapping charge? What -- what -- what is this?

1 You know, I mean, if -- if this -- these are the
2 questions you're going to ask me, we should just
3 stop this thing now because this is complete
4 nonsense.

5 **MR. MOORE:** I would join in that. I think
6 you are now definitely trying to -- or do discovery
7 in a case that's not at issue, that's -- you're not
8 representing Mr. Russell is, that he's filing pro
9 per, that he's misrepresented his address to the
10 court, and which there's a pending motion to quash.
11 So -- and if that's where you're going with this,
12 you're going to have to stop because it's improper.

13 **MS. LLAGUNO:** And our position is we are
14 entitled to discovery on Mr. Walsh's communications
15 with Steve Russell and on Tara's credibility.

16 **MR. MOORE:** Not about this subject matter
17 when you have a separate lawsuit.

18 **MS. LLAGUNO:** So are you directing the
19 witness not to answer?

20 **MR. MOORE:** I'm saying it's improper, and
21 he can do what he wants.

22 **MS. LLAGUNO:** So --

23 **MR. MOORE:** I can -- I -- I can represent
24 that it's an improper use, and it's actually a
25 misuse of the discovery process in California that

1 is actually sanctionable conduct. I've brought
2 motions like that before. When you have a case that
3 -- that there's no jurisdiction over a party, a
4 party's been named, he's got a motion -- a pending
5 motion to quash, resisting jurisdiction, and you're
6 trying to do discovery in that case when discovery
7 is not even allowed to be begun until there's an
8 answer on file, yeah, it's entirely improper. So --

9 **MS. LLAGUNO:** I --

10 **MR. MOORE:** -- you know, Mr. Walsh is an
11 adult. He -- he seems to be very, very well
12 equipped to know his rights. I'm making statements
13 for the record as to the misuse of the discovery
14 process that you're engaged in.

15 **MS. LLAGUNO:** And Mr. Moore, I'd like to
16 remind you to keep your objections succinct. You
17 may not coach the witness or provide these long
18 speaking objections.

19 **MR. MOORE:** That is about as succinct as
20 it gets, given the -- the numerous improprieties of
21 your behavior.

22 **MS. LLAGUNO:** And our position is,
23 regardless of in this litigation, these questions
24 are within the square -- squarely within the scope
25 of discovery.

1 **MR. MOORE:** No, they're not.

2 **MS. LLAGUNO:** Well, we can take it up with
3 the court, but please refrain --

4 **MR. MOORE:** You --

5 **MS. LLAGUNO:** -- from arguments at this
6 deposition.

7 **MR. MOORE:** You should -- you should bring
8 it up with the court because that's where you will
9 be sanctioned.

10 **BY MS. LLAGUNO:**

11 **Q. Mr. Walsh, in these emails, Steve is**
12 **communicating with you about Tara while she was in**
13 **New York supposedly on vacation, correct?**

14 **A. I have no idea.**

15 **Q. Did you review the document that I'm**
16 **showing you?**

17 **A. I read what -- you could -- you -- you**
18 **sent the first page. I also see the subject of it**
19 **is Settlement Proposal, which is again him dictating**
20 **things that -- that he insists or believes should**
21 **happen. And it -- it's just more of the -- the --**
22 **the same consistency of absurdity and delusion.**

23 **Q. Okay. And I'd like to point your**
24 **attention to -- I'm going to pull up the correct**
25 **page.**

1 But you did receive these emails; is that
2 correct, Mr. Walsh?

3 A. It appears I did, yes.

4 Q. And they're dated about June 15, 2008; is
5 that accurate?

6 A. That's what it says.

7 Q. So in these emails, Mr. Russell states
8 that Tara was seeking treatment for a variety of
9 conditions, including borderline personality
10 disorder.

11 MR. MOORE: Assumes facts not in evidence;
12 lacks foundation. That's not a question.

13 MS. LLAGUNO: I'm trying to pull up the
14 correct page number.

15 BY MS. LLAGUNO:

16 Q. And if I can direct your attention here
17 under paragraph 1 where Steve Russell emailed you
18 that one of the conditions would be that "Tara enter
19 the year long program recommended by her therapist
20 or alternative program her care givers and we agree
21 is appropriate." Who is the therapist referenced
22 here?

23 A. I have no idea.

24 Q. So you don't know the therapist and the
25 treatment Mr. Russell is referring to in this email.

1 A. I do not, no.

2 Q. You never spoke with Mr. Russell regarding
3 a specific therapist and specific treatment?

4 A. No, not that I recall.

5 Q. And in -- oh, I'll just share this. And
6 Steve Russell also emailed you lower down the chain
7 on June 15, 2018. Could I direct your attention --

8 A. If --

9 Q. -- to this paragraph?

10 A. -- you say so.

11 Q. Steve Russell states the bottom line is
12 that Tara is in a tough place, needs support, and is
13 not making great decisions. She's committed serious
14 acts, like crimes, in drugging me, taking money,
15 conspiring to run off with Evie, and frankly worse.

16 What was the tough place that Tara was in?

17 MR. MOORE: Calls for speculation.

18 BY MS. LLAGUNO:

19 A. Yeah. Whatever tough place Russell
20 thought she was in since he's --

21 Q. Do you know --

22 A. -- the one making the determination. So
23 none of this is two-sided. This is all presented by
24 Russell and -- you know, and -- and Russell's
25 interpretation of things. And so it really has no

1 basis in -- in reality away from Russell.

2 **Q. So you do not believe that Tara was in a**
3 **tough place while she was in San Francisco.**

4 A. Oh, yeah. She was in a tough place
5 because she was living with a lunatic. So yes, she
6 was in a tough place.

7 **Q. So that is what you believe the tough**
8 **place that Tara was in to be?**

9 A. No, no. Russell would not refer to
10 himself as a lunatic, so he's not saying that. But
11 he is still -- these are all in Russell's words.
12 They're not in Tara's words. They're not in my
13 words. They're in Russell's words.

14 **Q. And I'm asking you: What do you believe**
15 **the tough place that she was in?**

16 **MR. MOORE:** It's irrelevant.

17 **BY MS. LLAGUNO:**

18 A. Yeah, yeah. What -- what tough place are
19 you talking? Are you talking about the tough place
20 that Russell references in his email here? That's -
21 - so what -- what are you asking me, exactly?

22 **Q. So do you agree or not agree that Tara**
23 **Walsh was in a tough place while she was in San**
24 **Francisco?**

25 **MR. MOORE:** Agree with what? Agree with -

1 - with --

2 **BY MS. LLAGUNO:**

3 A. Yeah. Agree with what? What --

4 **MR. MOORE:** -- Russell?

5 **BY MS. LLAGUNO:**

6 A. -- she was in a tough place? Explain what
7 you define is a tough place.

8 **Q. Independent of this email, do you believe**
9 **Tara Walsh was in a tough place while she was in San**
10 **Francisco?**

11 A. She was in a situation that was horrific
12 with a person who was tremendously unstable.

13 **Q. So you -- you believe that -- your**
14 **understanding of what a tough place that Tara was**
15 **going through is different from --**

16 A. No. I did not say that, and you know I
17 didn't say that. Russell says it here. You define
18 for me what Russell believes a tough place is, okay?
19 Now, you're just -- you're -- you're not being fair
20 here, and -- and you know exactly what you're
21 saying. And you're trying to get me to say
22 something I'm not going to say. I don't know what
23 Russell is --

24 **MR. MOORE:** Yeah. That's --

25 **BY MS. LLAGUNO:**

1 A. -- referring to --

2 MR. MOORE: It's totally --

3 BY MS. LLAGUNO:

4 A. -- all right?

5 MR. MOORE: -- argumentative.

6 BY MS. LLAGUNO:

7 A. You tell me what Russell is referring to.

8 Q. So you do not know --

9 A. No, I don't. I don't.

10 Q. -- he's referring to --

11 A. I don't.

12 Q. -- when he put that --

13 A. Let's move on. I don't, no.

14 Q. And you do not know what the serious acts
15 are that he's referring to in this email?

16 A. I have no idea. You know, we -- we live
17 in Chappaqua, and Hillary Clinton lives in
18 Chappaqua. And as you know from QAnon, which I
19 imagine that Russell is a big fan of, you know, she
20 kills babies and eats them. So maybe Steve was
21 concerned that her being -- Evie being in Chappaqua,
22 she could be subject to the same cobble of, you
23 know, these people. So now -- now I can sort of
24 understand his -- his concern more.

25 MR. MOORE: Yeah. I was going to say the

1 whole --

2 **BY MS. LLAGUNO:**

3 A. (Audio disruption) yourself, Joy, because
4 conspiracy theories seem to run through this
5 testimony.

6 **MR. MOORE:** Exactly. It sounded like
7 QAnon --

8 **MS. LLAGUNO:** I --

9 **MR. MOORE:** -- as a -- as a basis of the
10 question, it sounds QAnon-ish.

11 Can -- do you have more? I mean, let --
12 this is real far afield from what the case is about.
13 So where -- where are we going with this?

14 **MS. LLAGUNO:** Yes. Mr. Moore, again, I'd
15 like to remind you to stop with your improper
16 speaking objections and insults on the record --

17 **MR. MOORE:** I'm -- I'm -- you know, you're
18 -- you're -- you -- it sounds like you're out of
19 questions. Do you have something for this witness
20 that is relevant?

21 **MS. LLAGUNO:** Yes. We -- our position is
22 it's all relevant.

23 **MR. MOORE:** No, it's not. You know it's
24 not. So let -- let's get to the task at hand of
25 what the case --

1 **THE DEPONENT:** Yeah. Let's --

2 **MR. MOORE:** -- is about.

3 **BY MS. LLAGUNO:**

4 A. Let's -- ask me some real questions, Joy,
5 and -- and let's get -- you know, if there's answers
6 I can provide that have anything to do with the
7 case, I will do that. But if you're just going to
8 keep going around in circles and make ridiculous
9 presumptions or ask me to answer questions that I
10 couldn't possibly answer, let's -- let's finish it
11 up.

12 **Q. In this email, Steve Russell emailed to**
13 **you that, "She's threatened suicide on multiple**
14 **occasions, has unpredictable reactions to her meds**
15 **and alcohol, and recently suffered a full-blown**
16 **delusion that led to an unavoidable accident with**
17 **Evie."**

18 A. I -- I didn't --

19 **Q. Has --**

20 A. -- I --

21 **MR. MOORE:** That's not -- there's --
22 there's not --

23 **BY MS. LLAGUNO:**

24 A. -- didn't --

25 **MR. MOORE:** -- a question pending -- not a

1 question pending. Don't -- no -- no answer is
2 required.

3 **THE REPORTER:** Stop. Please -- please do
4 speak one at a time.

5 I would like to stipulate for the record
6 that, if you do not speak one at a time, the record
7 will reflect as such, will not be clear. So before
8 we move forward, do you agree that the record --

9 **MR. MOORE:** You know --

10 **THE REPORTER:** -- will not be clear if you
11 do not speak one at a time --

12 **MR. MOORE:** We -- we know this. Court
13 Reporter, we know this. We heard this many times
14 from you, and you -- you're really starting to get
15 on my nerves, okay?

16 **THE REPORTER:** All right. We can go --

17 **MR. MOORE:** So you know --

18 **THE REPORTER:** -- we can go off the record
19 at this time --

20 **MR. MOORE:** No. You -- you can do your
21 job and stop interrupting us.

22 **THE REPORTER:** It is impossible to keep a
23 clear record if you keep interrupting. So before we
24 move forward, I would like to stipulate that the
25 record will not be clear if you keep doing that --

1 MS. LLAGUNO: And --

2 THE REPORTER: -- this deposition. So --

3 MR. MOORE: We --

4 THE REPORTER: -- before we move forward -

5 -

6 MR. MOORE: -- we -- we might --

7 THE REPORTER: -- I'd like to stipulate --

8 MR. MOORE: -- get a better court reporter

9 because, you know, I --

10 MS. LLAGUNO: Mr. Moore, please --

11 MR. MOORE: -- this stuff happens all the

12 time in --

13 MS. LLAGUNO: -- please don't insult --

14 MR. MOORE: -- depositions.

15 MS. LLAGUNO: -- the court reporter. The
16 last court reporter made the same comment saying she
17 cannot get a clear record because of your
18 interruptions. So please stop interrupting when
19 someone is speaking.

20 MR. MOORE: You -- you --

21 MS. LLAGUNO: Mr. Walsh --

22 MR. MOORE: -- need to ask --

23 MS. LLAGUNO: -- was speaking --

24 MR. MOORE: -- ask a question --

25 MS. LLAGUNO: -- Mr. Walsh --

1 **MR. MOORE:** -- that's reasonable.

2 **MS. LLAGUNO:** I'm speaking. Please wait
3 until I'm finished speaking, and then you can speak.
4 That is how a deposition works. One person speaks
5 at a time. Thank you, Mr. Moore.

6 Mr. Walsh was speaking, and you
7 interrupted what he was testifying. So I'd
8 appreciate if you don't do that again. You have to
9 let your client speak. You cannot coach him to not
10 speak.

11 **MR. MOORE:** I'm not coaching. I am
12 stating things for the record. This Zoom process is
13 not very conducive because there's not enough delay
14 between your question, his answer, my ability to get
15 an objection in before he answers.

16 So if the court reporter can't keep up
17 with it, then everyone's going to have to slow down
18 and give some pause between so I can get my
19 objections in. The court reporter doesn't seem to
20 have the capacity as what -- what I've seen in
21 California to be able to do this type of work.

22 But nevertheless, I think we need to get
23 back on track what the case is about. And if you
24 would ask -- ask him questions about that, then we
25 can get done.

1 **MS. LLAGUNO:** Mr. Moore, please refrain
2 from insulting the court reporter, or anyone else on
3 this deposition for that matter.

4 Thank you.

5 **BY MS. LLAGUNO:**

6 **Q.** Mr. Walsh, back to my questions. Are you
7 aware of how many times Tara Walsh has threatened
8 suicide?

9 A. No.

10 **Q.** Do you know what meds are being referred
11 to here?

12 A. No.

13 **Q.** Do you know what the unpredictable
14 reactions are that are being referred to in this
15 email?

16 A. No.

17 **Q.** Do you have any knowledge as to what the
18 full-blown delusion is being referred to in this
19 email?

20 A. No.

21 **Q.** So Tara Walsh -- has Tara Walsh ever
22 communicated to you that she was going through
23 delusions?

24 A. No.

25 **Q.** You also are not aware of what the ongoing

1 treatment being referred to in this email is?

2 A. Nope.

3 Q. So Tara Walsh never communicated to you
4 that, while she was in San Francisco, she was going
5 through ongoing treatment.

6 A. No. I -- I -- I didn't know the details.

7 Q. Since Tara turned 18, did you ever have
8 power of attorney over her?

9 MR. MOORE: Objection; privacy.

10 BY MS. LLAGUNO:

11 A. Not going to answer that.

12 Q. Were you ever part of a discussion where
13 it was discussed that you would have had power of
14 attorney over her?

15 A. No.

16 Q. And I just wanted to clarify for the
17 record you do -- you're refusing to respond to the
18 question of if you've ever had power of attorney
19 over Tara; is that correct?

20 A. Yes.

21 Q. In the discussion that you -- regarding
22 having power of attorney over her, who else was
23 present? Or sorry. Did you -- was anyone else
24 present when you spoke about a power of attorney?

25 MR. MOORE: Just to --

1 **BY MS. LLAGUNO:**

2 A. I --

3 **MR. MOORE:** -- is this -- hold on. Hold
4 on. Let me -- let me -- is this about --

5 **BY MS. LLAGUNO:**

6 A. -- didn't --

7 **MR. MOORE:** -- when she's 18?

8 **MS. LLAGUNO:** I said any time after she
9 turned 18.

10 **MR. MOORE:** Okay.

11 **BY MS. LLAGUNO:**

12 A. No. You asked me, Joy, if I ever had the
13 recollection or did I, or whatever. And then you
14 pretty much asked the same question, right?

15 **Q. Okay.**

16 A. You asked the same --

17 **Q. We'll move on. And in this email, could**
18 **you read what you wrote to Steve Russell on June 15,**
19 **2018, at 4:48 p.m.?**

20 A. I don't see any email.

21 **Q. Sorry. Do you see the email now?**

22 A. All right. So? I don't have to read it
23 aloud. You can read it. I -- I -- I just read it.
24 Sure.

25 **Q. So turn -- and so in this email, you**

1 **assured Steve Russell that Evie was safe, right?**

2 A. Yeah.

3 **Q. So Tara and Evie were with you at this**
4 **time; is that correct?**

5 A. Yes.

6 **Q. And in the email above, he, Russell,**
7 **reminds you about the restraining order; isn't that**
8 **right?**

9 A. I had nothing -- I -- I have no idea. I
10 have no idea. Like I said, I wouldn't -- I wasn't
11 aware of a restraining order. I -- I made that
12 clear. And if Steve Russell told me there was a
13 restraining order, I wouldn't have held any -- I --
14 I wouldn't have given it any credence because it
15 wouldn't have mattered. What -- who is it -- it's
16 not like he's a member of law enforcement or the
17 court telling me that Tara has a restraining order.
18 It's Steve Russell acting independently telling me
19 something that I don't recall anyway. So no.

20 **Q. In response to Steve Russell stating, "As**
21 **you know the lifting of Tara's restraining order,"**
22 **in response to that email, you responded,**
23 **"Understood Steve -- I have advised her to stick to**
24 **the original plan/agreement;" is that -- isn't that**
25 **accurate?**

1 A. I -- I have no idea what -- what -- what I
2 was referring to there.

3 Q. This response, this -- you wrote this
4 response; is that accurate?

5 A. It appears I did, yes.

6 Q. But you don't recall what you were
7 referring to.

8 A. Nope.

9 Q. I'm now going to show you what we're going
10 to mark as Exhibit 92.

11 THE REPORTER: Marked as Exhibit 92.

12 (WHEREUPON, Exhibit 92 was marked for
13 identification.)

14 BY MS. LLAGUNO:

15 Q. Mr. Walsh, do you recognize this document?

16 A. No. There were so many documents that he
17 sent me over the -- but, yes, it appears that this
18 was sent to me by Steve Russell --

19 Q. And --

20 A. -- on June 22nd, 2018. So I acknowledge
21 its existence.

22 Q. And this is dated just two days after the
23 last email conversation we were looking at in
24 Exhibit 91, right?

25 A. Yeah. Yeah. Yep.

1 **Q. I'm going to point you to Steve Russell's**
2 **email to you first.**

3 A. Yeah.

4 **Q. Could you review this first paragraph?**

5 A. No. Why don't we go to the last paragraph
6 where it says good news. I think it will give us a
7 chance to cheap -- cheaply and quickly resolve and
8 will almost certainly grant Tara the freedom to
9 choose where she wants to live.

10 He's basically saying that he's the one
11 that is going to make the decision on her freedom
12 based on if certain conditions are met. I mean, if
13 that doesn't tell you the -- the -- the -- the --
14 the contents of the type of stuff, the -- the -- the
15 level of control and -- and -- and insanity, that
16 paragraph says it all.

17 So go ahead, ask me your questions.

18 **Q. So Steve Russell emails you that, based --**
19 **quote, based on my conversations with Tara, it's**
20 **pretty clear that she intends on violating the**
21 **California restraining order and I think it might**
22 **just be to go to actual mediation next month.**

23 And what -- could you read your response
24 to Steve Russell?

25 A. I -- I -- I -- I read it. Yep. Sure.

1 Q. And you state to Steve Russell, "I am
2 getting mixed messages as to Tara's intentions and
3 will need to discuss further -- we'd like her to
4 commit to staying with us as we've discussed;" is
5 that accurate?

6 A. That's what I wrote, yeah.

7 Q. What did you mean regarding "mixed
8 messages as to Tara's intentions"?

9 A. I -- I have no idea.

10 Q. Do you know if she intended to go back to
11 San Francisco?

12 A. I have no idea.

13 Q. But you wanted her to stay in New York; is
14 that accurate?

15 A. She's an adult. She -- wherever she ended
16 up going, it would have been her decision.

17 Q. Even though it was in violation of a court
18 restraining order?

19 A. That had --

20 MR. MOORE: Assumes --

21 BY MS. LLAGUNO:

22 A. -- nothing to do with me. Court --

23 MR. MOORE: Assumes facts not in evidence.

24 BY MS. LLAGUNO:

25 A. -- which -- which I think, in retrospect,

1 didn't actually exist anyway. Otherwise, she would
2 have been in violation. And it was dismissed by the
3 court. So you're talking -- you're -- you're asking
4 me to agree that she violated a restraining order
5 that has since -- that -- that no longer exists and
6 that I had nothing to do with. So what -- what --
7 what are you trying to determine here?

8 **Q. I'm just wanting an ask -- answer to my**
9 **question, Mr. Walsh.**

10 **MR. MOORE:** He answered it. Move on.

11 **BY MS. LLAGUNO:**

12 **Q. As you know, there have been family law**
13 **proceedings between Tara and Steve Russell in both**
14 **San Francisco and New York. Brienne wrote a letter**
15 **to the judge in the San Francisco proceeding in**
16 **which she stated that Brendan told her that Steve**
17 **Russell had beaten Tara unconscious. Did Brendan**
18 **tell you this as well?**

19 **A. I don't know if he told me that or not; no**
20 **recollection.**

21 **Q. Has anyone ever told you that Steve**
22 **Russell beat Tara unconscious?**

23 **A. I -- I don't -- I -- I don't recall, no.**
24 **I -- I -- I don't -- no.**

25 **Q. And you don't recall Tara Walsh ever**

1 telling you that then; is that correct?

2 A. No recollection.

3 Q. Do you know why Brendan believed why Tara
4 Walsh -- I'm sorry. Let me rephrase.

5 Do you know why Brendan believed that
6 Steve Russell had beaten Tara Walsh unconscious?

7 A. You'll have to ask Brendan.

8 Q. Do you know if Tara told him that -- why?

9 A. You'll have to ask Tara and Brendan.

10 Q. Are you aware that Tara testified under
11 oath that that was untrue and Steve Russell had
12 never beaten her unconscious?

13 A. I have no idea.

14 Q. Tara's attorney also submitted a letter to
15 the judge from your wife, Maura Walsh. Why didn't
16 you submit a letter to the judge?

17 A. I have no idea.

18 Q. Do you know why Brienne wrote Maura's
19 letter for her to the judge?

20 A. No -- no idea.

21 Q. Tara has also claimed that you threatened
22 to sue her for custody of Evie if she moved out of
23 your house; is that true?

24 A. No.

25 Q. Do you believe Tara is unfit to care for

1 **Evie on her own?**

2 A. No.

3 **Q. Do you think Evie would be safe living**
4 **with Tara on her own?**

5 A. I believe Evie would be safe, yes.

6 **Q. Do you know when Tara and Steve began**
7 **dating?**

8 A. I have no idea.

9 **Q. Do you know how Tara met Steve Russell?**

10 A. No idea.

11 **Q. Prior to Tara being in San Francisco, did**
12 **you ever speak with Tara regarding Steve Russell?**

13 A. He came to our house one time for
14 Thanksgiving. I don't -- I don't know when it was.
15 If it was before that, after that, I really don't
16 know.

17 **Q. On --**

18 A. First time I met him, I didn't know
19 anything about him.

20 **Q. What was your impression when you met him**
21 **at Thanksgiving?**

22 A. I really tried to like him. He -- he
23 seemed to be friendly. But we didn't have enough of
24 an engagement to -- for me to really draw any kind
25 of opinion.

1 Q. Do you know who Tara's closest friends
2 were at the time?

3 A. No, I don't.

4 Q. Do you know who Jesse Ozeri is?

5 A. I know Jesse. I've met Jesse. Sure.

6 Q. Who is he?

7 A. He's a friend of Tara's. You -- you said
8 -- said that yourself.

9 Q. What is his relationship to Tara? Do you
10 think they're close?

11 A. I have no idea. They're -- they're
12 friends.

13 Q. Do you know if he has a relationship with
14 Mr. Russell?

15 A. I have no idea.

16 Q. Do you know who Rashmi Narendra is?

17 A. I know who Rashmi is. I don't know her
18 last name. If it's the same Rashmi, I've met her as
19 well. She's a friend of Tara's. Outside of that, I
20 know almost nothing about her.

21 Q. And have you ever spoken with Rashmi
22 regarding Steve Russell?

23 A. No. Never.

24 Q. Have you ever spoken with Jesse Ozeri
25 regarding Steve Russell?

1 A. Never.

2 Q. Do you know who Rosario Lardiere is?

3 A. That's another friend of Tara's.

4 Q. Do you know if they're close?

5 A. I have no idea.

6 Q. And have you ever spoken with Rosario
7 regarding Mr. Russell?

8 A. Absolutely not.

9 Q. Have you ever spoken with Matan Gavish
10 regarding Mr. Russell?

11 A. Nope.

12 Q. And did you say the first time you met
13 Steve Russell was at Thanksgiving at your house?

14 A. To the best of my recollection, yes.

15 Q. And to the best of your recollection, how
16 many times have you met Steve Russell in person?

17 A. Outside of that, I met him at the hospital
18 and then in Brooklyn at the apartment. So it's --
19 it's less than, you know, maybe three or four, at
20 most.

21 Q. And from the time Tara and Steve started
22 dating to Tara becoming pregnant with Evie, how many
23 times did you see Tara?

24 A. How many times did I see Tara? I have no
25 idea.

1 **Q. You never personally witnessed Steve be**
2 **physically abusive towards Tara; is that correct?**

3 A. That's correct.

4 **Q. Did Tara ever tell you that Steve had hurt**
5 **her or abused her prior to giving birth to Evie?**

6 A. I really don't recall. I -- I -- I didn't
7 -- I -- I didn't have much knowledge of the guy one
8 way or the other until Evie -- until she became
9 pregnant with Evie.

10 **Q. So after became -- she became pregnant**
11 **with Evie, did Tara ever tell you that Steve had**
12 **hurt her or physically abused her?**

13 A. I -- I don't remember specifics, but I --
14 I seem to think that she did mention it one time
15 when she was in San Francisco.

16 **Q. What did she say?**

17 A. I -- I don't -- I'm -- I'm -- I'm going to
18 say I -- I -- I -- I really don't know. I really
19 don't know.

20 **Q. Did you do anything about it when she did**
21 **tell you that?**

22 A. If I had felt that she was physically
23 abused, I probably would have done something, but I
24 don't -- I would have told Tara to get out of the
25 situation as fast as should could. So -- but --

1 but, no, I have no -- no recollection.

2 **Q. Do you believe that Tara was physically**
3 **abused by Steve Russell?**

4 A. I -- I don't know what to believe, yes or
5 no. So I don't know how to answer that.

6 **Q. Have you ever reported Steve Russell to**
7 **the police?**

8 A. Have I reported him to the police? No.
9 He reported me to the police on numerous occasions
10 when he was up in New York claiming I let the air
11 out of his tire and I followed him around and I
12 threatened him. And so -- but I -- I don't think I
13 ever called the police on him.

14 **Q. And you never submitted anything to the**
15 **police regarding Steve Russell.**

16 A. I don't recall. I did get a call from the
17 San Francisco police one time about -- about the
18 drugging case, and they asked me some questions.
19 And -- and then I believe that I answered them as
20 I'm answering these, 100 percent truthfully. And --
21 and the case was dismissed, which is why he's
22 bringing the civil case. It's why he sues everyone,
23 because eventually all the cases get dismissed
24 because they have no, you know, real legal
25 foundation. So ...

1 Q. And what did you tell the San Francisco
2 police when they called you?

3 A. They asked me the same things -- did you
4 have any knowledge; did she tell you this; and --
5 and I gave the same answers that I'm giving you. I
6 had no idea.

7 Q. Did you ever help Tara report Steve
8 Russell to the police?

9 A. No.

10 Q. Has Tara ever asked you to help her report
11 Steve Russell to the police?

12 A. No.

13 Q. You never saw any actual evidence of Steve
14 abusing Tara --

15 A. No.

16 Q. -- is that correct?

17 A. I did not.

18 Q. No cuts? No cuts --

19 A. No.

20 Q. -- or bruises? Okay.

21 A. No, no. Did you -- did you write any of
22 these questions, or he -- he's written them all? I
23 mean, it's like I'm talking to him. So ...

24 Q. It's privileged. I can't say.

25 A. Yeah, I know.

1 Q. Did -- did you ever witness any concerning
2 behavior from Mr. Russell prior to Evie's birth?

3 A. I didn't -- I didn't meet the guy prior to
4 Evie's birth other than that one time.

5 Q. So other than those two times you stated
6 that Mr. Russell was acting bizarrely, was there any
7 other concerning behavior from Mr. --

8 A. Yes.

9 Q. -- Russell?

10 A. Yes. Tara had mentioned on numerous
11 occasions that Russell was a heavy drug user --
12 cocaine, et cetera -- and that he would, you know,
13 come to Brooklyn where they had this apartment. And
14 he would be up all night, and then he would
15 disappear for two days and come back. And he'd be
16 on these -- you know, these cocaine runs.

17 And she kept mentioning a guy, I think,
18 named Chris, who's his friend. And again, our
19 advice always to her was, well, you need to get out
20 of that situation because it's bad.

21 Q. And so this was according to what Tara
22 told you, correct?

23 A. Yes. It's according to what Tara told me.

24 Q. You never personally witnessed that.

25 A. I didn't, no, because I didn't see the

1 guy. And quite frankly, I had no interest in going
2 to Brooklyn to see the guy.

3 **Q. And it -- so you never personally**
4 **witnessed Steve Russell taking drugs; is that**
5 **correct?**

6 A. No, I have never personally witnessed
7 Steve Russell taking drugs.

8 **Q. And so Tara never told you that Mr.**
9 **Russell physically hurt or assaulted her at any**
10 **time; is that accurate?**

11 A. I -- I don't know. I don't know if she
12 ever mentioned it. I've never witnessed it, no.

13 **Q. Did you ever personally witness Tara**
14 **providing Steve Russell with drugs?**

15 A. No.

16 **Q. Did Tara ever tell you that she brought**
17 **Steve Russell to the emergency room?**

18 A. Yes.

19 **Q. What did she tell you?**

20 A. That he had -- he -- he had basically lost
21 his mind. And I think his mother was involved and
22 maybe his brother. I don't remember the details.

23 **Q. And when was this?**

24 A. I don't know, exactly. It was sometime in
25 San Francisco.

1 **Q. And did she explain why she brought him**
2 **specifically to the emergency room?**

3 A. He claimed he was poisoned. I believe she
4 said that they -- they were at dinner with his --
5 his brother and his wife and their child over at the
6 apartment, or something. And he started claiming
7 that someone poisoned him, whether it was the
8 Ukrainians or his brother or someone else. Some --
9 someone had poisoned him. It's -- it's what I
10 remember.

11 **Q. Do you believe there's a chance that he**
12 **felt poisoned because he was being drugged by Tara?**

13 A. A zero chance.

14 **Q. Did Tara ever tell you that Steve Russell**
15 **had set a fire in their home?**

16 A. No. I don't -- I -- I -- she told me he
17 did all kinds of odd things, but I don't remember
18 that specifically.

19 **Q. Did you ever personally witness Steve**
20 **Russell breaking electronic devices?**

21 A. Jesus. Yeah, we're -- we're -- you --
22 you're going off on some tangents here. So I -- I
23 don't know how much longer I want to do this because
24 none of this has anything to do with the case at
25 hand. No, I never did.

1 **Q. Did Tara ever tell you that Steve Russell**
2 **had broken, or tried to break, one of her devices --**
3 **electronic devices?**

4 A. She did. She said he took his -- her
5 computer away. And you know, he's done -- he --
6 he's -- technically, he's -- he's a very savvy guy.
7 And -- and, you know -- and -- and he's proven that
8 by forwarding, you know, hacked emails and hacked
9 text messages that I've seen that he's done. So you
10 know ...

11 **Q. What else did Tara tell you about Steve**
12 **and her laptop?**

13 A. I think she mentioned that he had thrown
14 it across the -- the room, or something, and -- and
15 broke it.

16 **Q. Did she say anything else about Steve**
17 **Russell's actions during that?**

18 A. No.

19 **Q. So she never stated to you that Steve**
20 **Russell had hit her while they were fighting over**
21 **this laptop.**

22 A. Yeah. She did say that he was -- he had
23 grabbed her arm, or something like that,
24 aggressively and had hurt her. Now that -- thanks
25 for reminding me. I -- I -- I kind of overlooked

1 that. But now I do remember her saying that.

2 Q. That -- do you remember that Tara Walsh
3 told you that Steve Russell had hit her?

4 A. Hurt her, yes.

5 Q. Hit.

6 A. That he hit her? He grabbed her and hurt
7 her.

8 Q. Did Tara tell you that Steve Russell had
9 kicked her?

10 A. I don't recall her saying that, no.

11 Q. Did Tara Walsh ever tell you that Steve
12 Russell had punched her?

13 A. No.

14 Q. And you don't recall if Tara had ever told
15 you that Steve Russell had hit her.

16 A. I'm not sure what the difference is
17 between hit and hurt, but he hurt her.

18 Q. And how -- what did Tara tell you about
19 him hurting her?

20 A. Him, like, pulling the computer out of her
21 hand and, like, you know, shoving her and -- and
22 then taking the computer forcefully and throwing it.
23 If that's not hitting her, you know, it's -- it's
24 semantics. So you make the determination.

25 Q. Do you remember how many days Tara was in

1 **the hospital for Evie's birth?**

2 A. I don't remember, specifically. I'd say
3 it wasn't that long. It was maybe two days, maybe
4 three.

5 **Q. Were you there for Evie's birth?**

6 A. I was, yes.

7 **Q. For how many days?**

8 A. I was there the -- the night she was born,
9 and we went back the next day. And I believe we
10 even might have driven her back to Brooklyn. I
11 can't remember. I can't remember.

12 **Q. Who else was at the hospital?**

13 A. My wife and my two daughters. And then
14 the next day, there were -- you know, there were
15 quite a few people -- aunts, uncles.

16 **Q. Was Steve there?**

17 A. Yes. Steve did show up the next day. He
18 was there the night of the birth, and then he
19 disappeared. And he showed up at the hospital the
20 next day after he had informed us and gave us a list
21 of all the things he had bought at Bloomingdale's or
22 someplace.

23 **Q. So how many -- how many days was Steve**
24 **there?**

25 A. I'm not sure; may -- maybe two. But he --

1 he, you know, wasn't there throughout. He
2 disappeared.

3 **Q. While Steve was at the hospital, how was**
4 **he acting?**

5 A. Bizarre.

6 **Q. How, specifically?**

7 A. The security guards were there. He had
8 security guards with him at the birth, okay?

9 **Q. Did you -- did you notice any violent**
10 **behavior?**

11 A. There was no violent behavior at the
12 hospital. He -- he would have had to do it out --
13 out in the open. No. No.

14 **Q. Did you know that after Brienne brought**
15 **Tara her medication at the hospital, Steve felt that**
16 **he had been drugged?**

17 A. No.

18 **Q. Did Tara tell you about this?**

19 A. So -- so Tara drugged him from her prone
20 position in the hospital bed?

21 **Q. Is that a no?**

22 A. No.

23 **Q. Did -- did Tara ever talk to you about**
24 **researching a famous woman poisoner?**

25 A. No.

1 **Q. Did Tara ever tell you about her**
2 **researching what a lethal dose of Seroquel was?**

3 A. No.

4 **Q. And --**

5 A. You -- you've got to remember something
6 here. The whole premise of this case, from what I
7 understand and which you're -- you're not even
8 hinting at, is that somehow Steve Russell was given
9 some Seroquel one night or two nights, or whatever
10 he say, and basically became -- began a string of --
11 of insane behavior that lasted for months. I think
12 that maybe -- you should be talking to some
13 pharmacists and see if that's actually possible that
14 Seroquel in small doses can turn a person into a
15 raving lunatic for months at a time because that's
16 the premise of the case, okay?

17 So you could answer all your questions by
18 doing some very basic research. And you'll realize
19 that the -- the charges made here are -- are
20 scientific. It's right out of some sci-fi magazine,
21 and they're ludicrous. And you're asking me to
22 answer questions that have no basis in reality.

23 **Q. I'm going to proceed with my questions.**
24 **Mr. Walsh, you -- when Tara told you that Steve had**
25 **hit her, did you call the -- did you think to call**

1 **the police?**

2 A. I -- no because it -- it -- she had told
3 me it had happened prior to the time she mentioned
4 it to me. She didn't call -- she didn't tell me
5 when it was happening at the point of it happening.
6 So ...

7 **Q. And did you believe her when she told you**
8 **that?**

9 A. I did, yeah.

10 **Q. And did you ever see any actual evidence**
11 **of that happening, or you just base -- solely**
12 **relying on what Tara told you?**

13 A. Joy, I'm going to -- I'm going to ask you
14 this again because it's clear that you're -- you're
15 communicating with Russell right now. And -- and I
16 wish you'd be honest about that because you turn
17 your eyes and you read the questions. And you -- it
18 -- it -- it's -- you -- you're -- you're being fed
19 the questions. There's no doubt in my mind.

20 **Q. Okay. Well, I'll represent to you that**
21 **that's not true. I've prepared my own topics, but**
22 **--**

23 A. Okay. Well -- well, your -- your -- your
24 reputation is on the line. And if we discover
25 otherwise, it's -- it's going to be -- I -- I -- I

1 think it's going to be an issue. So ...

2 **Q. So did Tara tell you when she went back to**
3 **the apartment after giving birth that Steve had**
4 **destroyed the apartment?**

5 A. Yeah. Oh, I -- I -- I was in the
6 apartment. The apartment was -- was a horror show,
7 and we didn't -- we didn't want Evie going back
8 there. And I spent -- you know, members of our
9 family spent hours cleaning the place up before Evie
10 came back because we did not -- the condition of the
11 apartment was -- was really bad.

12 **Q. Did Tara tell you that Steve believed the**
13 **apartment had broken -- been broken into?**

14 A. Yes.

15 **Q. Did Tara tell you --**

16 A. No --

17 **Q. -- that --**

18 A. And -- and Steve -- Steve told me that
19 himself.

20 **Q. Did Tara tell you that Steve and his**
21 **security personnel had set safety triggers to let**
22 **him know if somebody had entered the apartment**
23 **without their consent?**

24 A. Tara didn't tell me that, no.

25 **Q. Did Tara tell you that, in fact, Matan**

1 Gavish had been in -- in the apartment without
2 Steve's knowledge and triggered the safety triggers?

3 A. No. I had no knowledge of that
4 whatsoever.

5 Q. So if Steve believing that -- seeing that
6 somebody had triggered the safety triggers, that
7 wouldn't change your opinion of -- on why Steve
8 thought he had -- the apartment had been broken
9 into?

10 MR. MOORE: Assumes facts not in evidence;
11 incomplete hypothetical.

12 You can answer if you have an opinion.

13 BY MS. LLAGUNO:

14 A. No. No.

15 Q. And going back to my previous question --
16 I don't believe you answered it -- so you never saw
17 any actual evidence of any physical abuse against
18 Tara Walsh; is that correct?

19 A. That's correct.

20 Q. And you stated that Tara had told you
21 sometime after it happened, not -- not close to the
22 time the laptop incident happened. Do you know
23 about how long after she told you?

24 A. No.

25 Q. Did Tara tell you that after Steve -- I'm

1 **sorry. Go back.**

2 **Did -- did Tara tell you that Steve had**
3 **fired his security personnel?**

4 A. I don't know. I -- I don't know. I don't
5 know. I don't know if -- if she did or she didn't.

6 **Q. Did Tara tell you that, after Steve fired**
7 **them, the security personnel were staging an**
8 **intervention?**

9 A. No.

10 **Q. Did Tara tell you that the security were**
11 **still watching Steve after he had fired them?**

12 A. No. My -- my -- my impression was that
13 there -- the -- the security people that were
14 ethical and decent people viewed Russell as a deeply
15 troubled man, and they felt sorry for him. So there
16 are people like that. There are people that take
17 their professional responsibility seriously and --
18 and actually try to help their clients. And I think
19 that was the case with a couple of them. I think
20 they genuinely felt bad for the guy because he was
21 so out of control.

22 **Q. Do you believe that they told Steve**
23 **Russell that there were -- that there was --**

24 A. I -- I believe the two guys that I met at
25 the hospital quit because they -- they realized that

1 they were just taking money from -- from a person
2 that was severely challenged.

3 **Q. And how do you know the two guys --**

4 A. I don't know that. I don't know that.
5 I'm saying I -- I -- I -- I believe that's what
6 happened. I don't know that for fact.

7 **Q. What is the basis of your belief that they**
8 **quit?**

9 A. That they were nice guys. And when I was
10 discussing with them and -- you know, they -- they
11 were -- they were -- as I said, they were
12 sympathetic to the situation my daughter was in and
13 that we -- we were in as grandparents and relatives
14 and -- and the baby's case because they saw that --
15 that -- that -- they -- they watched this guy. They
16 were following him around. And they were being paid
17 to follow him around. And they -- it -- it was
18 obvious that there -- there's a deeply troubled man.

19 **Q. But how do you know specifically that they**
20 **quit? Did they tell you they were going to quit?**

21 A. I -- I don't remember. I told you I don't
22 remember.

23 **Q. But you learned -- did you somehow learn**
24 **that they quit, or this is just an assumption --**

25 A. I'm saying -- no, no, no. It's -- it's an

1 assumption. It's -- I -- I'm -- I'm speculating. I
2 don't know that for a fact.

3 Q. Do you know -- sorry. I'm going to go
4 back.

5 You stated that you expressed to Tara that
6 you were against her moving back to San Francisco.
7 Do you have any understanding of why Tara chose to
8 do so anyway?

9 A. Nope.

10 Q. Do you know if Tara wanted to try to get
11 Steve Russell to marry her?

12 A. I have no idea.

13 MR. MOORE: Asked and answered.

14 BY MS. LLAGUNO:

15 A. Yeah. It's been answered a bunch of
16 times.

17 Are we -- are we near conclusion here,
18 Joy?

19 Q. I'm hoping so. I'll try to get to this as
20 soon -- did you want another break?

21 A. No. I -- I just want to be done with it.

22 Q. Do you know if anybody in your family went
23 to San Francisco to help Tara?

24 A. No. Nobody in our family went to San
25 Francisco.

1 Q. Why not?

2 A. Why not? San Francisco is a six-hour
3 flight, right, from New York. It's not something
4 you just go and do.

5 Q. Were you concerned about Tara losing
6 custody of Evie?

7 A. No. I didn't think --

8 Q. Was your -- I'm sorry. Go ahead.

9 A. No. I was not.

10 Q. Was your family concerned?

11 A. No.

12 Q. Were you aware that, after being caught by
13 the nanny drugging Steve and being diagnosed with
14 certain mental illnesses, Tara almost fled San
15 Francisco, leaving Evie behind?

16 A. I -- I have no knowledge that Tara drugged
17 Steve Russell, and I don't believe she fled San
18 Francisco. Again, she's an adult. She made her own
19 decision to leave San Francisco. And so -- so no.
20 The answer is no.

21 Q. Do you remember an incident where Tara
22 tried to leave San Francisco without Evie?

23 A. No.

24 Q. So Tara never called you when she tried to
25 leave San Francisco and left Evie at home.

1 A. No. Not that I recall, no.

2 Q. Did Tara ever send you photographs of
3 bruising of her thighs when she was in San
4 Francisco?

5 A. I don't recall.

6 Q. Did Tara ever tell you that she had
7 bruised herself by bumping into her kitchen island
8 while chasing Steve Russell?

9 A. No.

10 Q. Did Tara ever tell you that she had
11 attempted to destroy Steve Russell's laptop by
12 stabbing it?

13 A. No.

14 Q. Did Tara ever tell you that she was
15 experiencing what she called post-partum psychosis?

16 A. No.

17 Q. So Brienne testified that she writes a
18 personal blog called A Brie Grows in Brooklyn. Have
19 you ever read her blog?

20 A. Unfortunately, yes.

21 Q. How often have you read it?

22 A. As infrequently as possible.

23 Q. Have you gotten angry with her over
24 certain blog posts?

25 A. Personal question; not going to answer.

1 Q. I just wanted to clarify. You don't want
2 to answer that question because you believe it to be
3 personal.

4 A. That's right.

5 Q. Did Brienne ever write anything that you
6 believed was not true?

7 A. I think she tended to embellish things at
8 times, yes.

9 Q. Could you give me examples of --

10 A. No.

11 Q. Because you don't recall or because you
12 don't want to respond?

13 A. Because I don't want to. Personal
14 question; I'm choosing not to answer.

15 Q. Brienne has written in her blog about what
16 she called Tara's "rapid mood swings." Based on
17 what you've observed of Tara, have there been times
18 when you saw her mood change suddenly?

19 A. No comment; personal question; not going
20 to answer.

21 Q. Have you ever seen Tara react to something
22 in a way that you thought to yourself was verbally
23 aggressive, like lashing out at someone?

24 A. Personal question; not going to answer.

25 Q. Do you believe Tara to be impulsive?

1 A. Personal question; not going to answer.

2 Q. Have you ever witnessed Tara acting
3 impulsively?

4 A. Personal question; not going to answer.

5 Q. Has Tara ever acted impulsively with
6 regards to her spending?

7 A. Personal question; not going to answer.

8 Q. Does Tara ever impulsively buy things?

9 A. Personal question; not going to answer.

10 And probably for the next 20 you're going to ask me
11 I'll have the same response. So maybe we can just
12 get to something with content.

13 MR. MOORE: I would also object on the
14 basis of relevance.

15 BY MS. LLAGUNO:

16 Q. Thank you, Mr. Walsh. I have to make a
17 record of the questions you don't want to answer
18 just for our own record. But thank you. Just -- so
19 bear with me.

20 Has Tara Walsh ever made large purchases
21 on a whim?

22 A. Oh, God. Same -- same answers. Personal
23 information; no comment; not going to answer.

24 Q. Does she ever go on impulsive sprees?

25 A. Personal question; not going to answer.

1 Q. Has Tara ever, to your knowledge, charged
2 so much on a credit card that it was far beyond her
3 own ability to pay it back?

4 A. Personal question; not going to answer.

5 Q. In one of Brienne's blog posts, she
6 describes an incident in which Tara was dancing what
7 she called "out-of-control style when she suddenly
8 stopped, approached a guy who was making out with
9 his girlfriend, and kicked him as hard as she could
10 on his ass." Have you ever witnessed Tara engage
11 physically violent acts like this?

12 A. Jesus Christ. Person -- no, I have not.

13 Q. Has Tara often exhibited strange or
14 erratic behavior like this?

15 A. Personal question; not going to answer.

16 Q. Brienne also wrote in her blog that Tara
17 wanted a pet hamster and, when she wasn't given one,
18 she purposely threw herself down a flight of stairs.
19 Has Tara purposely hurt herself because she did not
20 get something she wanted on other occasions?

21 A. No. It's ridiculous.

22 Q. Has Tara ever threatened to hurt herself
23 in order to get something she wanted?

24 A. No.

25 Q. I'm going to show you now what we're going

1 to mark as Exhibit 93.

2 THE REPORTER: Marked as Exhibit 93.

3 (WHEREUPON, Exhibit 93 was marked for
4 identification.)

5 BY MS. LLAGUNO:

6 Q. This is a text message conversation
7 between Brienne and Tara that Brienne produced in
8 this litigation. Have you seen this text message
9 before?

10 A. Who's this from? No.

11 Q. Brienne produced this text message with
12 Tara in the litigation.

13 A. So what --

14 Q. Okay.

15 A. -- about it?

16 Q. Brienne --

17 MR. MOORE: He's not seen it. It's not
18 relevant to anything. Can you move on? I mean,
19 this is, again, really improper behavior.

20 THE DEPONENT: Yeah. What -- what does
21 this have to do with her drugging --

22 MR. MOORE: She -- she just wants to --
23 she's just trying to shame Tara in this by having
24 something to do with -- about abortion in an -- in
25 an email. It's really a disgusting and despicable

1 act by a member of the bar, and it shouldn't be
2 condoned by even responding to it.

3 **THE DEPONENT:** Yeah. I -- I -- I -- I
4 agree, Frank. Thank you. And you are not coaching
5 me to answer, but this is -- you know, this is
6 beyond the realm of any serious questioning or fact-
7 finding. And if it continues, I'm just going to
8 discontinue the deposition.

9 **MS. LLAGUNO:** And Mr. Moore, I'd like to
10 remind you again to stop with your improper speaking
11 objections --

12 **MR. MOORE:** You can remind me as much as
13 you want. I'm not going to --

14 **MS. LLAGUNO:** Let -- let me --

15 **MR. MOORE:** -- listen to you.

16 **MS. LLAGUNO:** -- let -- let --

17 **MR. MOORE:** I -- I find nothing you say --

18 **MS. LLAGUNO:** -- let me finish. Let me --

19 **MR. MOORE:** -- relevant or accurate.

20 **MS. LLAGUNO:** Let me finish my statement.
21 Stop being --

22 **MR. MOORE:** No. You --

23 **MS. LLAGUNO:** -- disrespectful.

24 **MR. MOORE:** I'm sorry.

25 **MS. LLAGUNO:** We've told you multiple --

1 **MR. MOORE:** No. I -- you -- you have no
2 respect coming to you.

3 **MS. LLAGUNO:** Stop -- stop interrupting
4 me, and let me finish my statement.

5 Our position is Brienne produced this in
6 litigation, and we are able to conduct discovery on
7 Tara's credibility and communications with her --

8 **MR. MOORE:** Not -- not -- not -- not about
9 a private matter. You're -- the -- it's really
10 disgusting, you know. You're just a disgusting
11 human being. So I -- I -- I just --

12 **MS. LLAGUNO:** Could you repeat that, Mr.
13 Moore?

14 **MR. MOORE:** What?

15 **MS. LLAGUNO:** Could you repeat that?

16 **MR. MOORE:** You're a disgusting human
17 being.

18 **MS. LLAGUNO:** Thank you.

19 **MR. MOORE:** To do this -- to do this to
20 this -- this father, really, really pathetic, you
21 know. What does this have to do with the case,
22 first of all?

23 **MS. LLAGUNO:** Let me --

24 **MR. MOORE:** And secondly, why are you just
25 trying to shame this family? I don't get it.

1 **MS. LLAGUNO:** Let me continue with my
2 questions.

3 **MR. MOORE:** Is this -- is this the kind of
4 thing you're getting paid for?

5 **BY MS. LLAGUNO:**

6 **Q.** Brienne testified at her deposition that
7 the context of this message was that you and Maura
8 Walsh had offered to help Brienne and Caleb with the
9 down payment on their home in Westchester; is that
10 accurate?

11 **A.** I -- I'm not answering that question. It
12 has nothing to do with anything. It's none of your
13 business.

14 **Q.** Did you speak with Tara about helping with
15 Brienne and Caleb's down payment?

16 **A.** None of your business.

17 **Q.** Just to clarify, you're refusing to
18 answer, correct?

19 **A.** None of your business.

20 **MR. MOORE:** On the basis of privacy, I
21 assume?

22 **THE DEPONENT:** Yes.

23 **BY MS. LLAGUNO:**

24 **Q.** Did you know why that Tara -- sorry.
25 Scratch that. Did you know that Tara was so angry

1 about it?

2 A. Not going to answer.

3 Q. Brienne testified that it was not true
4 that she ever forced Tara to get an abortion. Has
5 Tara told other lies like this?

6 MR. MOORE: Assumes facts not in evidence;
7 argumentative; constitutes collateral, or in
8 attempts -- and a lame attempt at that -- collateral
9 impeachment -- really lame.

10 BY MS. LLAGUNO:

11 Q. You can respond, Mr. Walsh.

12 A. No.

13 Q. Does Tara have a tendency to distort
14 reality?

15 A. It's the same question --

16 MR. MOORE: Argumentative.

17 BY MS. LLAGUNO:

18 A. No answer; same nonsense questions. I'll
19 give you a chance to, you know, get back on track
20 and ask real questions. But if this continues, I'm
21 not going to sit here for hours and, you know, try
22 to answer questions that have no bearing on anything
23 and that are my personal private matters and, you
24 know, that you're being dictated to by Russell. So
25 ...

1 Q. Mr. Walsh, our position is we are able to
2 take -- conduct discovery on Tara's credibility.

3 A. No, Joy --

4 MR. MOORE: No, you're not.

5 BY MS. LLAGUNO:

6 A. Your position is that you're being paid by
7 Russell to harass and intrude upon a family that has
8 been under this guy's pressure and -- and -- and --
9 and Tara for three years now.

10 You know, I go out at night -- and you can
11 put this in the record, and I hope the court
12 reporter gets it all -- but sometimes I'm at the end
13 of my driveway when it's dark at night. And I feel
14 uncomfortable that someone's going to come out of
15 the weeds and shoot me because Mr. Russell has
16 enough money, and he's unstable enough, he's
17 vindictive enough, he's angry enough to do something
18 really, really serious. And people like you enable
19 him, okay? And you give a person that has ill
20 intentions and psychotic thoughts -- you give a
21 person like that a leash to do what you're sitting
22 there doing today, okay? And -- and I'm not going
23 to allow you to do it, and I'm not going to let it
24 persist because it's unfair, it's unethical, and
25 it's mean.

1 Q. I am going to now continue with my
2 questions --

3 MR. MOORE: Here, here.

4 BY MS. LLAGUNO:

5 Q. -- appreciate it if we stop getting on
6 these tangents, we don't take time at the deposition
7 --

8 MR. MOORE: You're -- you're on the
9 tangent, counsel.

10 BY MS. LLAGUNO:

11 A. You've been on one continuous tangent.
12 You just -- it's the same nonsense you keep spinning
13 over and over again, okay?

14 If you want to stick to the facts of the
15 case, Steve Russell is a man with serious mental
16 instability. And you are one of the few lawyers in
17 the world that would take payment from this guy to
18 basically allow him to run rampant and -- and -- and
19 ruin people's lives, okay? So that's the basis of
20 the case. There is no other basis.

21 Q. So back to my question, has Tara ever
22 lashed out at --

23 A. No.

24 Q. -- other --

25 A. No. Never. She's been a perfect saint

1 her entire life. She's a model citizen. I've never
2 met a more genuine, wonderful, beautiful woman in my
3 life.

4 **Q. And yet you take what she says with a**
5 **grain of salt; is that correct?**

6 A. No. I believe everything she says. She's
7 a very, very straight-forward person.

8 **Q. And who is Matan Gavish?**

9 A. I have no idea.

10 **Q. Do you know his relationship --**

11 A. You already asked me that. He's a friend
12 of hers. Did Steve forget to -- did he -- that he
13 already asked that?

14 **MR. MOORE:** Yeah. You know, I mean, we --
15 we now are treading over --

16 **MS. LLAGUNO:** Mr. Moore --

17 **MR. MOORE:** -- asked and answered
18 questions. It seems like you've run out of
19 questions. Can you ask a question that is not a
20 repetitive question? This is --

21 **MS. LLAGUNO:** Can you stop?

22 **MR. MOORE:** -- really off track here.

23 **MS. LLAGUNO:** Mr. Moore, it is for the
24 judge to decide what isn't and what is off track.
25 You can object --

1 **MR. MOORE:** I'm telling you what's off
2 track because I can -- I can determine whether or
3 not you're just harassing a witness. And that's
4 what this appears to be. So if you're going to
5 continue down this road --

6 **MS. LLAGUNO:** State your objection --

7 **MR. MOORE:** That's my objection. You're
8 harassing and you're -- because you're asking
9 questions you already got answers to. If you've run
10 out of questions -- it's becoming very obvious you
11 have -- we should end this. If you have something
12 additional that's relevant, ask it.

13 **MS. LLAGUNO:** And this is all relevant.
14 And I'm continuing with my --

15 **THE DEPONENT:** It's not all relevant.
16 Let's -- let's wrap it up because this is -- it's
17 just more of the same nonsense. We're going around
18 in circles. And -- and I -- I don't believe for a
19 second that Steve Russell is not involved here.

20 **BY MS. LLAGUNO:**

21 **Q.** Okay. Brienne also wrote a blog post in
22 which she wrote that she's attracted to
23 "psychologically disturbed people." And below that
24 included a photo of Tara. Would you agree that Tara
25 is psychologically disturbed?

1 A. I would -- I would agree that, in this
2 case, as to her attraction of Stephen Russell, yeah,
3 she -- she has at least one time in her life been
4 attracted to -- to psychotic -- a psychotic person,
5 at least once in her life.

6 Q. Do you believe she has been on other
7 occasions?

8 A. No.

9 Q. Do you believe Tara is psychologically
10 disturbed?

11 A. No.

12 Q. Brienne also produced text messages with
13 Tara in which she called Tara "selfish and self-
14 consumed." Do you agree that Tara is selfish?

15 A. No.

16 Q. Would you agree that Tara is
17 self-consumed?

18 A. No.

19 Q. Brienne also produced text messages in
20 which she told Tara, quote, I'm sick of this victim
21 act. Take some -- expletive -- responsibility, end
22 quote. Would you agree that Tara plays a victim
23 act?

24 A. Personal question; nonsense; no answer.

25 Q. I'm sorry. Just to clarify, you're -- you

1 **don't want to answer --**

2 A. I'm not answering. It's personal.

3 **Q. -- because it's personal --**

4 A. Yeah.

5 **Q. -- because it's a personal question.**

6 A. That's correct.

7 **MR. MOORE:** I believe it's because it's
8 the right to familial privacy is what he's invoking.

9 **MS. LLAGUNO:** Mr. Moore, don't put words
10 in the witness' mouth. I'm asking --

11 **MR. MOORE:** No. I -- I -- I'm -- I --
12 well, I will tell you that this is a matter of
13 familial privacy, and I believe that's -- forms the
14 basis of -- another basis, at least, for his refusal
15 to answer.

16 **MS. LLAGUNO:** Okay. Then make that
17 objection. We can take that up with the judge.

18 **MR. MOORE:** You should.

19 **BY MS. LLAGUNO:**

20 **Q. Mr. Walsh, would you agree that Tara does**
21 **not take responsibility for her actions?**

22 A. No. No, I wouldn't agree to that.

23 **Q. Brienne also produced text messages in**
24 **which she called Tara a liar. Would you agree that**
25 **Tara is a liar?**

1 A. No.

2 Q. Has Tara ever lied to you?

3 A. No.

4 Q. Has Tara ever lied about you?

5 A. No.

6 Q. Can you recall any times Tara has lied to
7 someone?

8 A. No.

9 Q. Do you have the impression that Tara has
10 no qualms about lying?

11 A. No.

12 Q. Is lying something Tara does to get what
13 she wants?

14 A. No.

15 Q. Tara has stated that being in your home is
16 an unsafe environment for Evie. Do you think that's
17 true?

18 A. Evie is in a very, very loving
19 environment. She prospers in the environment she's
20 in.

21 Q. So would you say Tara Walsh stating that
22 your home is unsafe, would you consider that a lie?

23 A. I would say that it was not a lie. I
24 would say it was -- it was a bad interpretation.

25 Q. Brienne testified that one of the reasons

1 she called Tara a liar was because Tara said Evie
2 needed a safe environment and Tara did not feel safe
3 at your house --

4 A. I find that --

5 Q. -- is your --

6 A. -- I find that --

7 Q. Why would --

8 A. I don't know.

9 Q. -- why --

10 A. You'll have to ask her.

11 Q. Please let me finish the question before
12 responding so the court reporter can get it.

13 Why would Tara lie about that?

14 A. You'll have to ask her.

15 Q. Brienne testified at length about your
16 family and how she and Tara were raised.

17 MS. LLAGUNO: Where did Mr. Walsh go?

18 BY MS. LLAGUNO:

19 A. Personal question; not going to answer;
20 has nothing to do with the case or anything else.

21 Q. For example, Brienne testified that she
22 described the environment in which she was raised as
23 emotionally abusive. Do you agree with Brienne's
24 characterization?

25 A. Absolutely not.

1 **Q. Do you believe Brienne was lying?**

2 **MR. MOORE:** You can't -- that's
3 impermissible vouching.

4 **THE DEPONENT:** Just it's --

5 **MR. MOORE:** This is a -- this is a
6 vouching question. It's not --

7 **BY MS. LLAGUNO:**

8 A. Yeah. It's --

9 **MR. MOORE:** -- appropriate.

10 **BY MS. LLAGUNO:**

11 A. -- an obnoxious question. It's
12 unprofessional. It's -- it's pathetic, quite
13 frankly. And it's -- you know what? I'd blame you,
14 Joy, if I -- more so if I didn't think you were just
15 reading off a script. So -- but I wish you -- I
16 wish you great success in your career once you
17 dislodge yourself from this guy because you're --
18 you're taking yourself down a bad path here being
19 his -- being his -- you know, his disciple.

20 **Q. Brienne also called her childhood -- or --**
21 **traumatic --**

22 A. Go ahead. Great. Great. Fantastic.

23 **Q. You disagree with that characterization as**
24 **well?**

25 A. Yeah. Brienne went to Brown University,

1 and her entire tuition and living expenses were paid
2 for by her abusive parents. Her European vacations
3 were paid for by her abusive parents. She went to
4 one of the best high schools in the country as a
5 result of her abusive parents. So you tell me,
6 okay? You make the --

7 **Q. Brienne testified that when she and Tara**
8 **were --**

9 **A. -- interpretation.**

10 **Q. -- children -- I'm sorry. I cut you off.**
11 **I thought you had -- I think you froze a bit there.**

12 **Brienne testified that when she and Tara**
13 **were children, Maura would withhold food from them;**
14 **is that true?**

15 **A. It's ridiculous.**

16 **Q. Brienne also testified that when she and**
17 **Tara were teenagers, Tara or her attorney called**
18 **Child Protective Services on you and Maura Walsh**
19 **multiple times; is that true?**

20 **A. It's ridiculous.**

21 **Q. Why was Child Protective Services called?**

22 **MR. MOORE:** Assumes facts not in evidence.

23 **BY MS. LLAGUNO:**

24 **A. Yeah. It has nothing to do with anything;**
25 **not answering; personal question; personal**

1 information.

2 Q. Are you refusing to answer if it was true
3 or not?

4 A. I am, yes.

5 Q. Brienne also described a legal proceeding
6 over custody or emancipation of Tara involving Tara
7 and Brienne's aunts. Do you recall this proceeding?

8 A. Not going to answer that; personal
9 question --

10 Q. Will you answer --

11 A. No.

12 Q. -- will you answer --

13 A. I will not --

14 Q. -- who brought --

15 A. -- answer. I will not answer.

16 Q. Just to clarify, you're not going to
17 answer anything in regards to -- on emancipation or
18 custody proceeding.

19 A. That's correct.

20 Q. Did you remain Tara's --

21 A. You're --

22 Q. -- legal guardian?

23 A. You're going to -- you're going to follow
24 it up with an emancipation question, right? Did I
25 remain? Yes. We were Tara's guardians, yes,

1 through her --

2 **Q. No one else --**

3 A. -- pre-adult life, yes.

4 **Q. So no one else became Tara's legal**
5 **guardian.**

6 A. Not to my knowledge, no.

7 **Q. Is Tara currently living at your home**
8 **willingly?**

9 A. Other than the 12 hours she's kept in
10 shackles in the basement, she can walk around.

11 **Q. Tara told the court that she was living in**
12 **a cold attic with no heat at your house; is that**
13 **true?**

14 A. Did -- she didn't mention the bats? Or
15 the wild animals?

16 **Q. Mr. Walsh, please respond to the question.**
17 **Is that true?**

18 A. Of course not.

19 **Q. So Tara is not living in a cold attic with**
20 **no heat in your house.**

21 A. Absolutely not.

22 **Q. Brienne has also written about her and the**
23 **rest of your family receiving subpoenas in this**
24 **litigation and that you screamed at her for**
25 **responding to the subpoena and that she should just**

1 throw out the paperwork and ignore the subpoena; do
2 you recall this?

3 A. No.

4 Q. Were you angry with Brienne for suggesting
5 at any time that she might respond --

6 A. No.

7 Q. -- to a subpoena --

8 A. No.

9 Q. -- from Steve Russell?

10 A. No, no.

11 Q. Did you tell Brienne that she should throw
12 out any paperwork pertaining to this proceeding?

13 A. I have no recollection of doing that, no.

14 Q. Did you tell her husband, Caleb, the same
15 thing?

16 A. I have no recollection, no.

17 Q. Did you ever tell Brienne to ignore
18 paperwork pertaining to this proceeding?

19 A. No recollection, no.

20 Q. Did Tara ever tell you to ignore paperwork
21 pertaining --

22 A. No recollection, no.

23 Q. Have -- have you ever ignored paperwork
24 pertaining to this proceeding?

25 A. Have I? I -- if I was handed something

1 legally and professionally, I'd take it. If I
2 wasn't, I would -- so I don't know if I have or not,
3 quite frankly. But if you're going to ask me if I -
4 -

5 **Q. Have you ignored --**

6 A. -- stack of papers from a lunatic, if I'm
7 going to leaf through them and read them and give
8 them any kind of credence, the answer is no.

9 **Q. Have you ignored subpoenas in this**
10 **proceeding?**

11 A. No. I'm here, right?

12 **Q. Have --**

13 A. It's the only subpoena that I recall.

14 **Q. Have you ever thrown away paperwork**
15 **pertaining to this proceeding?**

16 A. This proceeding or any other proceeding?
17 There are no other proceedings.

18 **Q. This proceeding.**

19 A. I -- I don't believe I throw anything out.
20 I'm here; aren't I?

21 **Q. Have you thrown away paperwork pertaining**
22 **to any proceeding involving Steve Russell?**

23 A. I don't know of any other proceedings.

24 **Q. You accepted service of the subpoena for**
25 **your testimony today in September, and you also**

1 accepted subpoenas to Maura Walsh, Brendan Walsh,
2 and Matan Gavish. Did you speak with any of them
3 about the subpoenas?

4 A. No.

5 Q. Did you provide them with the subpoenas
6 you accepted --

7 A. No.

8 Q. -- on their behalf?

9 A. No. I didn't accept anything on their
10 behalf. I wasn't aware I was accepting anything on
11 their behalf.

12 Q. You didn't tell the process server that
13 you would accept it on their behalf.

14 A. I don't believe I would have, no.

15 Q. Did you --

16 A. We got --

17 Q. -- provide --

18 A. -- so much stuff from that guy, I would
19 just tell him, like, you know, just leave it on the
20 floor and --

21 MR. MOORE: Counsel --

22 BY MS. LLAGUNO:

23 A. -- I --

24 MR. MOORE: -- are you -- are you make --

25 MS. LLAGUNO: I --

1 **MR. MOORE:** -- are you making a
2 representation a process server -- actually that the
3 process server's position was that --

4 **MS. LLAGUNO:** Mr. Moore --

5 **MR. MOORE:** -- that this individual --
6 that this individual -- no, I -- you're -- you're
7 asking a question. You're trying to make a record.
8 But it sounds just absurd on its face that a process
9 server would accept the representation that someone
10 else is going to be accepting service on -- on
11 behalf of various individuals and -- and that is
12 proper service? Because I'm telling you this: If -
13 - if -- if that's your basis for getting these
14 people here at the deposition, it's improper. Then
15 that would be indication that people weren't
16 properly served with your subpoena, and these
17 depositions may, in fact, be null and void. It
18 looks like you might have gotten a court order under
19 false pretenses.

20 **MS. LLAGUNO:** Again, please refrain from
21 your speaking objections, Mr. Moore, and let me
22 continue with my --

23 **MR. MOORE:** I'm going to make my record.
24 You can't tell me what to do. So sorry.

25 **BY MS. LLAGUNO:**

1 Q. Okay. Mr. Walsh, when you received the
2 subpoenas, what did you do with them?

3 A. I have no recollection. I don't even
4 remember receiving them.

5 Q. So you never provided the subpoenas to
6 Maura, Brendan, and Matan.

7 A. No. I don't remember receiving them, no.

8 Q. Did Tara Walsh ever move to Thailand as a
9 teenager?

10 MR. MOORE: Objection; relevance.

11 BY MS. LLAGUNO:

12 A. Tara went to Thailand as part of a study
13 abroad program. So ...

14 Q. Got it. And do you recall how old she
15 was, approximately, for this study abroad program?

16 A. She was in college.

17 Q. Can you give us an overview of what Tara
18 did for work over the past 10 years or so?

19 A. No.

20 Q. Do you know if she has ever had any
21 employees?

22 A. No. I'm not -- I'm not going to answer
23 these questions.

24 Q. Can you explain the basis for your refusal
25 to answer?

1 A. Because they have nothing to do with
2 anything that involves this case or -- or with me
3 personally.

4 Q. We are able to conduct discovery onto
5 Tara's background.

6 A. I --

7 MR. MOORE: No, you're not. You're far
8 afield of what this case is about. You're harassing
9 the witness now. So you -- you better get to
10 something that's relevant and germane to your case.

11 MS. LLAGUNO: So are you directing him not
12 to respond?

13 MR. MOORE: I'm directing you to stop
14 harassing the witness. That's what I'm directing
15 you to do.

16 MS. LLAGUNO: Noted. Are you directing
17 him not to respond?

18 MR. MOORE: I am directing you to stop
19 harassing the witness.

20 MS. LLAGUNO: And you can state your
21 objection for the record. I'm asking --

22 MR. MOORE: That's what I just did three
23 times now. So shut up and move on.

24 BY MS. LLAGUNO:

25 Q. Tara also started a company called Vital

1 **Branding; is that right?**

2 A. You know, Joy, it -- the -- we're -- it's
3 the same line of questioning and, you know, about
4 her character and things like that. You're trying
5 to get me to say that she's an awful person who's
6 capable of drugging your -- you know, your -- your
7 esteemed client. And you know, it's -- well, you --
8 you haven't gotten there yet, and you're not going
9 to get there. We're never going to get there.

10 So let's -- unless you have any real
11 questions, let's wrap this up, okay? I'm done
12 answering question after question about absolute
13 nonsense, so questions that have been dictated to
14 you by your client, who has gone out of his way to
15 harass us for years and which you're not part and
16 parcel --

17 **Q. And so just to confirm, you -- you prefer**
18 **not --**

19 A. -- aiding and abetting. So ...

20 **Q. I'm sorry if I interrupted you. I -- it**
21 **cut out a bit.**

22 I was -- okay. I just -- to clarify for
23 my understanding, you are refusing to answer
24 questions regarding Tara's background.

25 A. Yeah. I -- at this point, no, I -- I --

1 I'm not refusing. I'm refusing from this point on
2 because I've been asked so many of them. But I -- I
3 -- I did not refuse to answer. I've answered quite
4 a few questions, hundreds of questions from you.

5 So to put it in the -- you know, to -- to
6 -- for -- for purposes of stating that I refuse to
7 answer, the -- the -- that's just not fair, and it's
8 ludicrous. What I'm saying is I'm just tired of
9 answering the same questions over and over and over
10 again that -- that are -- are, I think, designed to
11 get me to say something terrible about Tara, which
12 will then validate all of Steve Russell's,
13 basically, fears, paranoid responses to, and all the
14 other stuff. And it's just -- it's just silly, and
15 -- and -- and we should wrap this up.

16 **MR. MOORE:** Yeah. I mean, we've been
17 going on now for, it looks like, almost four hours.
18 And you've really gotten off the deep end and are
19 now into just character assassination, harassing
20 conduct, irrelevant questions, some of them which
21 are repetitive of questions already asked and
22 answered. I have other things to do. I'm going to
23 have to move on and get out of this. So I'd like
24 you to wrap this up and be done with it.

25 **MS. LLAGUNO:** Mr. Moore, respectfully, you

1 can't dictate when the deposition --

2 **THE DEPONENT:** Yeah. I -- I'm -- I'm
3 going to --

4 **MR. MOORE:** I -- I can --

5 **THE DEPONENT:** -- I'll -- I'll make that
6 decision, and I'll let the chips fall as they may.
7 And if a judge figures I'm in violation of, you
8 know, refusing to be held hostage for nonsense for
9 hours, I'll leave that up to the judge. So I'm
10 willing -- I'm willing to take my chances.

11 If you have some real questions you want
12 to ask me, ask me. If you want to just maybe get
13 Steve Russell to summarize his most pertinent
14 concerns and have him run them by me right now, we
15 can finish this up.

16 **BY MS. LLAGUNO:**

17 **Q. Currently, I was just asking about your**
18 **understanding of what Tara does for a living and her**
19 **company called Vital Branding. You --**

20 **A.** I'm not going to answer. I'm not going to
21 answer anything to do with her career. Zero.

22 **MS. LLAGUNO:** So I think, Court Reporter,
23 we've been going on for more than an hour now. Can
24 we take a quick, five-minute break?

25 **THE DEPONENT:** No. I'm done. I'm done --

1 **MR. MOORE:** No. I -- yeah. You -- you --
2 if you're -- if you're -- if you're going to
3 continue, we're -- we're -- we're going to finish
4 now, or we'll give you a few more minutes if you've
5 got some additional questions. But you -- you've
6 running -- kind of run the ship aground at this
7 point.

8 **THE DEPONENT:** Yeah. If -- if -- if you
9 have questions, a couple of them, we can wrap it up.
10 But if you go to break, I'm gone.

11 **THE REPORTER:** Would you like -- would you
12 like to go off the record at this time?

13 **THE DEPONENT:** No --

14 **MR. MOORE:** No.

15 **THE REPORTER:** Would --

16 **MR. MOORE:** Not -- not unless we're
17 finishing. If we're finishing, let's --

18 **THE DEPONENT:** No.

19 **MR. MOORE:** -- let's finish. If -- if
20 not, then -- if we're not finishing, she's -- you
21 know, whatever your last questions are, let's wrap
22 it up.

23 **MS. LLAGUNO:** I would like to take a five-
24 minute break.

25 **THE VIDEOGRAPHER:** Okay. The time is 3:44

1 p.m., and we are off the record.

2 **(WHEREUPON, a recess was taken.)**

3 **MS. LLAGUNO:** Thank you, Mr. Walsh. I
4 will be ending the deposition for today, but I will
5 be adjourning it based on that there were no
6 documents produced today and reserving my right to
7 continue if we need to do so to get those documents
8 compelled.

9 **MR. MOORE:** Yeah. So just so you
10 understand, Mr. Walsh, the -- that only means that
11 you -- you -- you -- you only have to come back if
12 there's a court order from a San Francisco Superior
13 Court.

14 **THE DEPONENT:** Okay.

15 **MR. MOORE:** You've met your obligation of
16 the New York order. And so in order to compel you
17 further, she would have to get an order from the San
18 Francisco Superior Court.

19 **THE DEPONENT:** Thank you, Frank.

20 **MS. LLAGUNO:** And we --

21 **MR. MOORE:** You're welcome.

22 **MS. LLAGUNO:** -- we disagree --

23 **MR. MOORE:** Thank you.

24 **MS. LLAGUNO:** -- we'd agree -- disagree
25 with that representation. But the counsel can

1 direct you how he wishes.

2 Frank, did you have any follow-up
3 questions or anything else to add?

4 **MR. MOORE:** I have nothing.

5 **THE VIDEOGRAPHER:** Okay. This is the end
6 of the deposition of Stephen Walsh. The court
7 reporter will now take the orders for the
8 transcript.

9 **THE REPORTER:** All right.

10 **MR. MOORE:** Nice meeting you, Stephen --

11 **THE REPORTER:** Ms. Llaguno, would you like
12 to order the original of this transcript at this
13 time?

14 **MS. LLAGUNO:** Yes. And --

15 **THE REPORTER:** And --

16 **MS. LLAGUNO:** -- get a rough draft
17 expedited as well?

18 **THE REPORTER:** Yes. I'll just note for
19 the record Mr. Moore has discontinued the call. But
20 he did note off the record that he does not wish to
21 order a copy at this time.

22 **MS. LLAGUNO:** Right. Correct. And --

23 **THE REPORTER:** And --

24 **MS. LLAGUNO:** -- and -- I'm sorry. Go
25 ahead.

1 **THE REPORTER:** Yeah. Oh, no. Sorry. My
2 apologies. For the rough, when -- when do you need
3 that by?

4 **MS. LLAGUNO:** As soon as possible. Or
5 when -- when do you think is a reasonable time to
6 expect it by?

7 **THE REPORTER:** Let's see here. Would
8 Friday be soon enough, or do you need it sooner?

9 **MS. LLAGUNO:** Could we do Thursday? Only
10 because I'm trying to get something on file. But
11 that's fine. I mean, whenever --

12 **THE REPORTER:** No problem.

13 **MS. LLAGUNO:** -- you can -- you can get
14 it. And --

15 **THE REPORTER:** Thursday? Okay.

16 **MS. LLAGUNO:** And let me send you now the
17 marked exhibits. Just I want you to confirm that
18 you can open them.

19 **THE REPORTER:** Oh, absolutely. And we can
20 -- we can go off the record.

21 **MS. LLAGUNO:** Oh, yeah --

22 **THE VIDEOGRAPHER:** Okay. The time is 4:02
23 p.m., and we are off the record.

24 **(The deposition of Stephen Walsh concluded**
25 **at 4:02 p.m.)**

CERTIFICATE

I, the undersigned, Erich Demerath, am a videographer on behalf of NAEGELI Deposition & Trial. I do hereby certify that I have accurately made the video recording of the deposition of Stephen Walsh, in the above captioned matter on the 26th day of April, 2021, taken at the location of Remote Video Conference, 394 Whipoorwill Rd, Chappaqua, NY 10514.

No alterations, additions, or deletions were made thereto.

I further certify that I am not related to any of these parties in the matter and I have no financial interest in the outcome of this matter.

A handwritten signature in black ink, appearing to read 'Erich Demerath', is written over a horizontal line.

Erich Demerath

CERTIFICATE

I, Monica DeLong, do hereby certify that I reported all proceedings adduced in the foregoing matter and that the foregoing transcript pages constitutes a full, true and accurate record of said proceedings to the best of my ability.

I further certify that I am neither related to counsel or any party to the proceedings nor have any interest in the outcome of the proceedings.

IN WITNESS HEREOF, I have hereunto set my hand this 7th day of May, 2021.



Monica DeLong
WA CCR#3489

1 Date: May 7, 2021 Assignment #: 50631

2 Deponent: Stephen Walsh

3 Case: Russel vs. Walsh

4
5 **DEPONENT:** It has been requested that you read and sign
6 your transcript. This transcript is to be read only by
7 you. Please make any corrections necessary on the
8 Correction Sheet ONLY. You are to sign the Correction
9 Sheet where indicated.

10
11 After signing the Correction Sheet, do the following:

12 1.The ORIGINAL executed Correction Sheet needs to be
13 returned to our corporation.

14 2.Forward a COPY of the executed Correction Sheet
15 directly to the attorney(s) listed below.

16 (The address(es) can be found on the Appearance Page
17 of your deposition.)

18 3.Retain a copy for your records.
19
20

21 CC: Naegeli Deposition & Trial

22 Joy Llaguno, Esquire
23
24
25

Deposition of: Stephen Walsh Date: 04/26/21
Regarding: Russel vs. Walsh
Reporter: DeLong/Willman

Please make all corrections, changes or clarifications to your testimony on this sheet, showing page and line number. If there are no changes, write "none" across the page. Sign this sheet on the line provided.

Page	Line	Reason for Change
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[illegible]

Signature

Stephen Walsh

DECLARATION

Deposition of: Stephen Walsh Date: 04/26/21

Regarding: Russel vs. Walsh

Reporter: DeLong/Willman

I declare under penalty of perjury the following to
be true:

I have read my deposition and the same is true and
accurate save and except for any corrections as made
by me on the Correction Page herein.

Signed at _____, _____
on the _____ day of _____, 2021.

Signature _____

Stephen Walsh

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